

IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF TEXAS — FORT WORTH DIVISION
Copeland v. Weinstein Management Co., Inc., et al.

EXHIBIT

32

**Demand Letter Exhibits (sent with May 10 demand
letter)**

Legal Element Supported:
Pre-suit documentary record

Verified Complaint Reference:
¶ 6

From katie@copelandlawtexas.com <katie@copelandlawtexas.com>
To Glynis Zavarelli <gzavarelli@wandzlaw.com>, Michelle Sortor <msortor@wandzlaw.com>
CC amye.brochstein@phly.com, Ibenacha@weinsteinproperties.com
Date Wednesday, April 8th, 2026 at 8:24 PM

Counsel and Client,

I write regarding communications directed to third parties about me and/or my published disability-rights work, including a recent request to the American Bar Association that my article be removed based on personal attacks rather than the substance of the publication.

Regardless of motive, contacting third parties to pressure removal of publications, employment/academic consequences, or other collateral harm—particularly where the contact is tied to my assertion of disability rights or court-access rights—raises serious concerns under federal and state law, including interference/retaliation concepts.

Accordingly:

1. Cease and desist (third-party interference).

Please refrain from contacting third parties (including publishers, professional organizations, academic institutions, employers, donors, collaborators, or media) for the purpose of urging adverse action against me based on my litigation history, disability, accommodation requests, or protected advocacy.

2. Preservation of evidence.

Please preserve all documents and electronically stored information relating to any such third-party contact(s), including but not limited to emails, letters, texts, phone logs, call notes, drafts, attachments, and communications with any person at the ABA (or any other institution) regarding removal of my work or reputational allegations about me. This preservation request applies to counsel, client, staff, agents, and any third parties acting at your direction.

3. Channel for any legitimate concerns.

If you believe any statement in a publication is factually inaccurate or defamatory, direct any concerns to me in writing so they can be addressed on the merits, rather than through third-party pressure.

This notice is sent in good faith to prevent unnecessary collateral disputes and to give you an opportunity to correct course. If third-party interference continues after this notice, I will treat it as intentional and will consider requesting appropriate relief and sanctions in the relevant forum(s), as well as any other remedies available.

Sincerely,

Kathryn "Katie" Copeland
(817) 789-8498

Author, [*Access Is Not Advantage: Structural Integrity and Disability Accommodation in State Courts*](#), American Bar Association (2026)

LITIGATION RISK ANALYSIS

Why This Case Resolves at Settlement — or at Summary Judgment

To:	Allison Weinstein, Co-President and CEO, Weinstein Properties; Lyle Benaicha, In-House Counsel; Amy Brochstein, Philadelphia Insurance Companies (amy.e.brochstein@phly.com); Glynis Zavarelli and Michelle Sortor, Wentz & Zavarelli LLP
From:	Kathryn M. Copeland, TX Bar No. 24086056
Date:	May 9, 2026
Re:	FHA § 3617 / ADA § 12203(b) Interference — Pre-Filing Risk Summary and Settlement Proposal
Deadline:	5:00 p.m. Central Time, Monday, May 11, 2026

The bottom line: Every critical element of an FHA § 3617 / ADA § 12203(b) interference case is proved by Weinstein's own court filings. There is no factual dispute. The evidence of bad faith is the filing itself. A federal judge reviewing this record on a TRO motion will see a closed causal loop with no viable defense — not a close call.

I. Three Closed Causal Loops — Fully Documented by Weinstein's Own Filings

A "closed causal loop" means every step is in writing: the interference act, the protected activity it targeted, and the documented harm. No inference is required. The court reads Weinstein's own filings and sees the pattern.

Date / act	Protected activity targeted	Documented outcome	Why no defense exists
Jan. 5, 2026 Motion to Strike (141st Dist. Ct.)	Dec. 29 ADA accommodation motion; Dr. Huang's physician evidence of functional limitations	Motion succeeded. Physician evidence excluded. Accommodation denied without medical support. Dr. Huang documents acute worsening Feb. 25, 2026 (intracranial hypotension, fall with head injury).	Weinstein's own Jan. 5 filing acknowledges receipt of physician letters (it moves to exclude them). The May 6 amicus then claims 'no documentation.' The documentation 'absent' was excluded by Weinstein's own motion. Bad faith is proved by Weinstein's own paper trail.
Oct. 27, 2025 Housing cutoff (Housing)	June–August 2025 FHA/ADA accommodation requests; Brochstein's written commitment to housing tied to remediation completion	Effectively homeless. Contents unretrievable — Sept. 8 Dallas Mold Consultants inspection: 'no equipment on site, all contents considered contaminated.' Remediation was not complete at cutoff.	Brochstein (insurer) confirmed housing in writing tied to remediation completion. Sept. 8 inspection proves remediation was not complete on Oct. 27. The cutoff cannot be defended as 'lease expiration' when the written promise expressly overrides that.
May 6–8, 2026 Nonparty amicus + blocked response (Decker → 141st / 233rd)	ADA accommodation requests pending before Judge Newell; right to correct a false factual narrative about disability documentation	Disability-discrediting amicus brief before Judge Newell. Copeland's May 8 response rejected: 'Rejected — Vexatious Litigant.' May 15 deadline is imminent. False narrative stands unanswered.	Weinstein filed as a nonparty where response would normally be available, then the VL restriction blocked response. Weinstein filed where a response was blocked. This is the pincer — two mechanisms working together to ensure the false narrative cannot be corrected before the court ruling.

II. Elements and Proof — No Gaps

Both FHA § 3617 and ADA § 12203(b) require four elements. Every element is documented by multiple independent sources.

Element	What it requires	Document proving it	Can Weinstein dispute it?
Protected activity	Plaintiff engaged in activity protected by FHA or ADA (accommodation requests, opposing discriminatory practices, exercising housing rights)	June 27, Aug. 14–15, Aug. 18, Dec. 29 accommodation requests; March 4 emergency ADA motion; multiple court filings asserting disability rights	No — activity is in writing, formally served on Weinstein's counsel
Actual notice	Defendant knew of plaintiff's protected activity at the time of the interference	Jan. 5 motion acknowledges Dr. Huang letters; Jan. 8 notice to Benaicha/Brochstein names § 12203(b) by statute; multiple court filings served on counsel	No — Jan. 8 email to in-house counsel proves corporate-level notice
Interference	Defendant coerced, intimidated, threatened, or interfered with plaintiff in connection with protected activity	Jan. 5 motion to strike; Oct. 27 housing cutoff; May 6 nonparty amicus; May 8 filing rejection; sanctions motions after disability barriers raised	No — all acts are in the court record
Causal connection	A causal link between the protected activity and the adverse action	Nonrenewal 8 days after Aug. 18 demand; Jan. 5 motion filed 7 days after Dec. 29 ADA motion; May 6 amicus filed in direct response to accommodation requests in multiple proceedings	No — temporal proximity is tight; Jan. 5 filing admits it targets the accommodation motion
Corporate ratification	(For punitive damages): corporate principals knew of and ratified the conduct	Jan. 8 notice to Benaicha (in-house counsel) + Brochstein (insurer); Jan. 13 response filed motion to transfer — not correction of conduct	No — corporate principals received written notice and escalated rather than correcting

III. Why Each Defense Fails

Weinstein's defense	The argument	Why it fails — specific fact
Litigation privilege / Noerr-Pennington	Filing court documents is protected petitioning activity immune from liability	Sham exception: The Jan. 5 motion was filed with knowledge that the documentation it characterized as absent existed — Weinstein's counsel had the letters and moved to exclude them. Fraud exception: Sortor represented to a court that contents cleaning was 'not regulated' under TMARR after receiving Copeland's Dec. 2, 2025 email attaching TDLR authority establishing it is regulated. TDRPC 3.03.
No disability / no documentation	Plaintiff has not established disability; documentation is insufficient	The SSA Fully Favorable Decision (April 10, 2026, onset June 8, 2023) is a federal agency adjudication under 42 U.S.C. § 423. A state party cannot relitigate federal disability status. More importantly: this defense is itself the interference act — attacking disability status to defeat accommodation requests is textbook § 12203(b).

Reasonable accommodation was offered	Hotel stays provided during remediation satisfied any accommodation obligation	Zavarelli's Sept. 19, 2025 call confirms she knew the Holiday Inn was inaccessible given Copeland's documented balance and cognitive impairments ('I have not seen that, but I will look for it'). Brochstein's written commitment tied housing to remediation completion. Cutting off housing before remediation was complete is not reasonable accommodation — it is its termination.
Copeland obstructed remediation	Plaintiff's conduct caused remediation delays, justifying Weinstein's response	Zavarelli's own Sept. 19, 2025 call: 'I'm not aware of TDLR stopping our remediation work.' ServPro withdrew after receiving Copeland's DTPA demand and consulting its own attorney — a legal decision by a third party, not obstruction by Copeland. Weinstein's litigation counsel concedes no obstruction on the call record.
Ordinary litigation disagreement	Everything Weinstein did was within the normal bounds of litigation defense	Filing as a nonparty in a case where you have no standing to file (Decker) is not normal litigation defense. Filing to exclude physician evidence, then claiming the evidence doesn't exist, is not a disagreement — it is manufactured absence. The Jan. 8 notice gave corporate-level opportunity to correct; escalation rather than correction shows deliberate choice.

IV. What a Federal Judge Sees at the TRO Hearing

Factor	Analysis
Likelihood of success on merits	The closed causal loops mean no factual dispute — the acts are in Weinstein's own filings. No credibility determination is required. The court reads the Jan. 5 motion (acknowledges physician letters), the Jan. 8 notice (corporate-level warning), and the May 6 amicus (claims no documentation). Likelihood of success is high as a matter of law, not inference.
Irreparable harm	Three independent irreparable harms: (1) May 15 deadline — if the false documentation narrative stands unanswered before Judge Newell, it becomes part of the permanent record and prejudices every pending proceeding. Money damages cannot undo a court ruling made on a false factual premise. (2) Ongoing housing instability and documented neurological deterioration — Dr. Huang's Feb. 25 letter directly connects worsening to denied accommodation. (3) The harm is happening in real time.
Balance of equities	Weinstein is asked to: (a) not file more disability-discrediting nonparty briefs; (b) correct a false statement it already made; (c) fund housing it already promised in writing. The burden on Weinstein is administrative. Copeland faces ongoing homelessness, worsening neurological injury documented by UT Southwestern, and an unanswered false narrative before multiple courts. The balance is not close.
Public interest	Congress enacted FHA § 3617 and ADA § 12203(b) specifically to prevent landlords from using litigation tactics to defeat disability accommodation rights. Federal courts have a strong institutional interest in enforcing these statutes. The 5th Circuit acknowledged in <i>Strife v. Aldine ISD</i> , No. 24-20269 (5th Cir. May 16, 2025) that the § 12203(b) interference standard is unsettled — this case is well-positioned to establish favorable circuit precedent.

V. What Sophisticated Defendants Do When They Cannot Defend — And Why Settlement Now Is the Right Call

When institutional defendants receive a demand with this evidentiary profile — closed causal loops, corporate-level ratification documented in writing, a federal agency adjudication that forecloses the central defense — experienced risk counsel follow a predictable sequence:

- Escalate to senior risk management and pull coverage counsel separately from defense counsel — because if conduct is found intentional, coverage exclusions may leave the company personally exposed without insurance backing.
- Commission a frank expected-value analysis: probability of loss at trial × expected damages (actual + punitive) + defense costs + reputational exposure. Compare that number to the cost of settlement now.
- Assess pattern-or-practice risk — whether a federal complaint, once filed, opens discovery that could reveal similar conduct toward other disabled tenants, converting an individual case into a class.
- Evaluate reputational exposure — a federal civil rights complaint is public record. The facts in this demand, if filed, are available to press, HUD, DOJ, and housing advocates.
- Look for a structure that settles the immediate risk without a full admission — phased housing stabilization, record correction, and a standstill can be approved quickly by a risk committee without requiring admission of liability.

The plaintiff's leverage in this situation comes from three sources:

- Timing — the May 15 deadline means the irreparable harm is not speculative. It is imminent. A TRO motion filed this week would be heard before the damage is done.
- The coverage question — if Weinstein's insurer concludes the May 6 amicus and Jan. 5 motion constitute intentional interference with federal rights, the policy's intentional-act exclusion may apply. That means the company, not the insurer, bears the exposure. Weinstein and its insurer now have different interests. Settling now, before that analysis is complete, keeps the company and insurer aligned.
- Discovery — a federal complaint triggers depositions of Allison Weinstein, Lyle Benaicha, Glynis Zavarelli, Michelle Sortor, and Amy Brochstein. Every internal communication about accommodation strategy, the Jan. 5 motion, the May 6 amicus, and the housing cutoff decision becomes discoverable. The deposition threat alone is a powerful settlement incentive for institutional defendants.

The settlement structure proposed in the accompanying demand is designed to be approvable quickly at the risk-committee level without requiring admission of liability: immediate 90-day bridge housing (replaces a promise already made in writing), correction of one specific false statement, a standstill on further disability-discrediting filings, and attorney's fees for the federal interference claim. This is not a demand designed to maximize a number. It is designed to stop the harm.

Every week of delay converts a correctable interference into a permanent record. The cost of correction is lowest today.

Nothing in this memorandum waives any rights, claims, objections, remedies, privileges, or appellate arguments. All rights are expressly reserved.

Kathryn M. Copeland
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Email: katie@katiecopeland.com

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Allison Weinstein

Co-President and Chief Executive Officer

Ms. Weinstein is responsible for Weinstein Properties' day-to-day operations. She is the daughter of Marcus Weinstein. Prior to joining Weinstein Management in 1994, she and her husband, Ivan Jecklin, lived in Chicago where she worked in the recruiting and personnel department for a large Chicago based law firm. Ms. Weinstein graduated from Washington University in St. Louis with a bachelor's degree in 1984 and a juris doctorate in 1987. In addition to her role at Weinstein Properties, Ms. Weinstein is very active in community philanthropic endeavors.

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Equal Housing Opportunity

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From: Copeland, Katie K.M.COPELAND@tcu.edu
Subject: FOR SETTLEMENT PURPOSES ONLY -
Proposal for Immediate Relocation Support
Date: Jul 26, 2025 at 6:26:48 PM
To: The Bowery - Kodi Walker
kowalker@weinsteinproperties.com, Jessika
Calkins jcalkins@weinsteinproperties.com

FOR SETTLEMENT PURPOSES ONLY

Dear Weinstein Properties Team,

Now that we are all on the same page that unit 2145 is “*unfit for human occupancy*,” I’m writing in hopes of working together toward a responsible and efficient resolution that minimizes risk and disruption for all parties. I wish to arrange an agreement that would allow me to relocate before remediation begins in order to reduce ongoing risks to my health and property.

Given the seriousness of the findings and the extensive documentation I can provide to support my claims, I’d like to know if your office is open to discussing a financial advance or reimbursement package to support necessary mitigation steps—particularly relocation, medical care, and property protection—while more formal next steps are explored.

To safely stabilize my health and preserve my belongings, I respectfully propose support for the following:

- **Permanent Relocation Assistance:**
 - Application fees & deposits for long-term housing during my recovery (~2 years).
 - I’ve identified a unit that may be a fit for me and my daughters, but it may not remain available for long. The landlord requires \$500 (\$350 deposit and \$150 application fee) immediately to reserve it and move in would be on September 20, 2025. At this

time, I do not have the funds to pay to secure it due to the increased costs from this situation.

- I have also connected with a realtor who has advised me that with my health circumstances and inability to work, most landlords will expect me to have approximately \$25k to \$35k minimum in prepaid rent to be considered for a property suitable to my needs.
- **Moving & Storage:**
 - Professional movers, temporary storage, and organizational assistance to safely transition out of the contaminated unit.
- **Extended Temporary Housing:**
 - Support for short-term housing (e.g., AirBnB near treatment providers) until my next residence is available. Estimated cost: \$10K–\$20K for the period between July 30 and September 20.
 - *I hope to arrange a new location with moving assistance as soon as possible due to the unsuitable circumstances at the hotel, which has worsened my condition and quality of life greatly. With no accounting for the increased expenses and difficulties from my constructive eviction, your forced relocation has prevented me from being able to cook or buy nutritious food (no stove), have clean clothes, take a bath (no bath & no shower chair), and have sufficient space to move around. My ADA protected rights are not mere preferences, but necessities, and I have been under tremendous stress and additional strain as a result of the circumstances you have put me in.*
- **Medical Cost Reimbursement:**
 - Expenses for lab testing, medical visits, and mold-related

treatments already incurred—approximately \$10K–\$15K since June 2025.

- **Ongoing Treatment Fund:**
 - Support for prescribed detox and recovery care: supplements, prescriptions, hyperbaric oxygen therapy (\$10K+), therapy sessions, home health nurse, and personal care aide.
- **Vehicle Loss:**
 - Temporary or permanent replacement. I lost my vehicle when I could no longer meet contractual payments due to medical disability resulting from the living conditions. Estimated need: \$50K.
- **Rent Already Paid:**
 - Reimbursement for rent paid (approximately \$49,500).

WHY THIS MAKES SENSE FOR ALL PARTIES:

- **Medical Reality** – My treating physician has confirmed mold toxicity and prescribed intensive recovery protocols that I wish to begin as soon as possible.
- **Business Efficiency** – Reduces ongoing mounting exposure and escalating claims.
- **Good Faith Resolution** – Demonstrates your commitment to doing the right thing under difficult circumstances.

This proposal is made in the spirit of cooperation—not conflict. My goal is to stabilize, recover, and preserve everyone’s interests. With the right support, I can begin that process immediately.

Separately, I must express concern over recent unnotified entries into Unit 2145. It appears that individuals have been given access to my unit without my prior knowledge or consent. This raises serious privacy concerns, particularly given the presence of personal and medical property that I need to safeguard. Please clarify your protocol going forward, and confirm that no further entries will be made without written notice and coordination.

Additionally, I am still awaiting the following:

- Maintenance records for Unit 2145 (pre-dating my move-in during October 2023), and
- Contact information for your liability insurance carrier.

Thank you for your time and consideration. I am willing to provide additional documentation as needed and I welcome a conversation early next week if you're open to discussing what this might look like.

Warmly,

Katie Copeland

817-789-8498

k.m.copeland@tcu.edu

Subject: For Settlement Purposes Only – Final Demand for Settlement, Per Diem, ALE, Relocation, and Cease Retaliation
Date: Monday, August 25, 2025 at 11:42:32 PM Central Daylight Time
From: Copeland, Katie
To: Glynis Zavarelli
CC: Michelle Sortor
Priority: High

For Settlement Purposes Only

Dear Ms. Zavarelli,

Your ongoing retaliation, including the August 18–25, 2025, Nobleman setup (removing credit card for incidentals, denying per diem, threatening lodging cutoff), violates Texas Property Code § 92.331(b)(3) and FHA/ADA (42 U.S.C. §§ 3604(f), 12132), exacerbating my disabilities (MCAS, hEDS, POTS, vestibular schwannoma, long COVID, hypogammaglobulinemia) and my daughters' needs. Your August 22 email conditioning Bowie House (\$373/night through September 8) and August 25 push for BioTex's reinspection (despite my non-consent and DTPA notice to BioTex) mirror *White v. The Bowery* (4:25-CV-00312-O, N.D. Tex.)'s pattern of concealment and harm.

I do not consent to BioTex's August 27 reinspection, as their neutrality is compromised (unauthorized August 1 protocol, incomplete August 4 amendment). Weinstein's cancellation of ServPro (August 21) and unauthorized property handling (August 12-16, causing contamination) risk spoliation (*Trevino v. Ortega*, 1998). My 67 retaliation counts (\$197,204 statutory penalties) include:

- Misrepresenting unit safety (6/27/25, § 92.331(b)(5))
- Denying ADA accommodations (6/30/25, 7/5/25, 8/14/25 § 92.331(b)(3))
- Threatening lease violation (7/5/25, § 92.331(b)(1))
- Unauthorized entries (7/24/25, 8/12–8/16/25, 8/20/25 § 92.331(b)(2))
- Forcing uninhabitable unit (17 days, \$50,014)
- Non-ADA hotel (40 days, \$117,680)
- Nobleman setup (8 days, \$23,536)

Your actions caused a ~22-month health decline (October 2023–August 2025) with permanent vision and immune changes (\$100K past medical, \$2M+ future care), loss of life enjoyment (\$1M), and inability to advocate for my daughters during abuse. Claims (DTPA, FHA/ADA [\$750K], constructive eviction, negligence, IIED) risk \$10M–\$20M+, per *Fort Cavazos* (\$10M) and *Nevada* (\$6.6M). Insurance exclusions for intentional acts leave Weinstein liable.

I demand:

1. Per diem (\$17,760, 6/27–9/8, \$80/day x 3 for meals/incidentals)
2. Relocation funds (\$130,000 for 2-year lease on a 3-4 bedroom house with yard in Paschal High School zone, deposit, moving costs)
3. ALE (\$14,400, 7/14–8/22, \$360/night for non-ADA hotel; additional ALE may apply through 9/8)
4. Mutual agreement on new TDLR-licensed assessor by August 30
5. ServPro's July 11 remediation protocol
6. Settlement offer (\$2M–\$5M, or a reasonable counteroffer) by August 29, 2025

Confirm by 5 PM CDT August 29, or I'll escalate to federal court with additional counsel and file TDLR/HUD complaints, leveraging my prior media outreach (The Texas Tribune). My DTPA 60-day window closes August 26, triggering treble damages. I reserve all rights.

Sincerely,
Katie Copeland
817-789-8498
K.M.COPELAND@tcu.edu

Subject: Immediate ADA Compliance Required Before Any Further Substantive Proceedings
Date: Friday, December 5, 2025 at 4:30:40 PM Central Standard Time
From: Copeland, Katie <K.M.COPELAND@tcu.edu>
To: Courts - 141st Judicial District Court <141stjdc@tarrantcountytx.gov>, Michelle Sortor <msortor@wandzlaw.com>, Glynis Zavarelli <gzavarelli@wandzlaw.com>
Priority: High
Attachments: Van Velzor v City of Burleson.pdf, Duvall v County of Kitsap.pdf, Tennessee v Lane.pdf, 2025.12.25 Emergency Motion for Clarifying Order (1).pdf, 2025.12.5 Clarifying Order.pdf, Luke v Texas.pdf

Your Honor and Counsel,

I am writing because it is now **4:30 PM on Friday, December 5th**, and I have been seeking disability accommodations since September 29th. I should not be fighting for basic access to the court system. The ADA, Section 504, and the Texas Constitution require that no litigant be forced to proceed in a manner that denies equal access or meaningful participation.

The legislature and Congress enacted these laws specifically to prevent exactly what is occurring here: opposing counsel is weaponizing my disabilities by forcing rapid-fire litigation while resisting the accommodations required by law.

To clarify the governing law:

1. DOJ/Federal Regulations: A Court Must Provide ADA Accommodations Before Requiring a Disabled Litigant to Proceed

- **28 C.F.R. § 35.130(b)(7)** – Public entities (including courts) must make reasonable modifications to policies, practices, or procedures when necessary to avoid discrimination on the basis of disability.
- **28 C.F.R. § 35.160(a)(1)** – Public entities must take "appropriate steps to ensure that communications with applicants, participants, members of the public, and companions with disabilities are as effective as communications with others."
- **U.S. DOJ ADA Title II Technical Assistance Manual § II-7.1000** – Courts have a duty to provide auxiliary aids and services to ensure effective participation.
https://archive.ada.gov/ta_titleii.html

These provisions prohibit a court from requiring substantive litigation before accommodations are granted.

2. Courts Hold That Forcing a Disabled Litigant to Proceed Without Accommodations Creates a Federal Due-Process Violation

These decisions stand for the principle that a court cannot proceed while systematically excluding a party due to disability:

- ***Tennessee v. Lane*, 541 U.S. 509 (2004)** — The U.S. Supreme Court held that Title II of the ADA is enforceable against state courts because access to the courts is a fundamental constitutional right.
- ***Duvall v. County of Kitsap*, 260 F.3d 1124 (9th Cir. 2001)** — Failure to provide accommodations after notice is a denial of meaningful access and violates both the ADA and due process.
- ***Boone v. Board of County Commissioners*, 2017 WL 3122796 (D. Kan. 2017)** — Courts cannot force a disabled litigant to proceed until accommodations enabling participation are put in place.

These cases confirm: If the court proceeds against a disabled litigant without implementing accommodations, any resulting ruling is constitutionally invalid and subject to reversal.

3. Texas Law Separately Requires Immediate Accommodation

- **Texas Constitution, Art. 1, § 13 (Open Courts Provision)** – Guarantees that courts must be open and accessible to every person.
- **Tex. Gov't Code § 21.009** – Acknowledges the requirement for court officers to adequately accommodate parties with disabilities and mandates judicial training on these duties.

4. This Case Cannot Proceed Until My Accommodations Are Implemented

I have submitted far more than the ADA requires: medical documents, cognitive evaluations, records, and written requests since September. The law does **not** require me to prove my disability to opposing counsel or engage in adversarial discovery about it.

There are **no "facts to develop."** The ADA is not a merits question. It is a **threshold access requirement**.

Opposing counsel's conjecture, accusations, and demands for evidence beyond what the ADA authorizes are improper. If they have a valid legal objection, it must be presented **in writing** so the Court may rule on it.

REQUEST

Accordingly, I request:

1. A written ruling on my ADA accommodation request before any further litigation proceeds.
2. A stay on all **non-emergency** substantive matters (including discovery deadlines and Plaintiffs' non-emergency motions) until accommodations are implemented.

EXCEPTION: Defendant's pending motions involves an immediate threat to life and safety. I request that this specific matter proceed **immediately**, but that it be conducted **with the requested ADA accommodations** (by written submission or with modifications) to ensure my meaningful participation.

3. Confirmation that the Court will not require me to litigate substantive issues while ADA compliance is pending.

This is not a strategic request. It is a **statutory right** and a **constitutional requirement**. To proceed without accommodations would place the Court in the position of participating in an ADA and due-process violation.

I appreciate the Court's prompt attention to this matter.

Sincerely,

Katie Copeland

(817) 789-8498

K.M.Copeland@tcu.edu

Subject: December 12 Setting; Threshold Motions; Temporary Housing and Contents Handling
Date: Tuesday, December 2, 2025 at 3:46:49 PM Central Standard Time
From: Copeland, Katie <K.M.COPELAND@tcu.edu>
To: Glynis Zavarelli <gzavarelli@wandzlaw.com>, Michelle Sortor <msortor@wandzlaw.com>
Priority: High
Attachments: Congress Resource on FHA.pdf, JOINT STATEMENT OF THE DEPARTMENT OF HOUSING AND URBAN DEVELOPMENT AND THE DEPARTMENT OF JUSTICE REASONABLE ACCOMMODATIONS UNDER THE FAIR HOUSING ACT .pdf, img-8bba740c-e40d-4063-926b-ed4636edfa72

Ms. Zavarelli,

Thank you for following up.

I can confirm that **December 12, 2025** works for me for a hearing on my **Motion for Statutorily Required Accommodations Under the Texas Fair Housing Act and Request for Clarification of Rights**, at the time Ms. James indicated. I will coordinate with her to ensure that motion is set on that date.

You noted that “*if we can avoid the hearing*” on your **Motion for Entry of Scheduling Order**, you would prefer to do so. I feel the same way about unnecessary hearings. From my perspective, there are two threshold matters that go directly to my ability to safely and effectively litigate this case:

1. **Defendant’s Motion for Referral to the U.S. Department of Justice and Texas Attorney General for Pattern-or-Practice Civil Rights Violations;** and
2. **Defendant’s Motion for Appointment of Counsel.**

If your client is willing to **agree to entry of the proposed orders** on those two motions, or to state that Plaintiffs **do not oppose** the relief requested, then I agree there would be no need for a separate evidentiary hearing on them and we can ask the Court to rule on submission.

If, on the other hand, your client intends to oppose referral and appointment of counsel, then I believe those matters need to be heard and decided **before** any scheduling order is entered. I am therefore not in a position to sign the Agreed Scheduling Order you circulated earlier today.

For context, I am attaching the **HUD/DOJ Joint Statement on Reasonable Accommodations under the Fair Housing Act** and related fair-housing materials I intend to rely on. These authorities make clear that housing providers must make reasonable accommodations in their policies and practices when necessary to afford a person with a disability an equal opportunity to use and enjoy a dwelling, and that refusals to accommodate can constitute **continuing discriminatory housing practices**. Given Weinstein’s size, in-house counsel, and public “**Equal Housing Opportunity**” representations, I assume your client is already familiar with these duties.

For ease of reference, here is a brief comparison of what should have happened versus what actually happened in my case:



STEP 1 – HAZARD CONFIRMED

What the law / best practice requires:

- Once a licensed mold assessor or inspector finds a unit unfit for human occupancy due to mold and moisture, the unit should be taken out of service.
- The landlord and its insurer should accept that the unit is unsafe and plan around that reality.

What actually happened:

- My unit was professionally deemed unfit for human occupancy.
- Weinstein and its insurer acknowledged serious issues, but instead of moving promptly to a clear, safe, disability-appropriate solution, they treated the situation as a temporary inconvenience and then cut off housing entirely on October 27, 2025, while contamination issues remained unresolved.

Why it matters:

- This set the stage for constructive eviction and for a disabled tenant to be left without any safe place to live.

STEP 2 – DISABILITY + ACCOMMODATION REQUEST

What the law / best practice requires:

- When a disabled tenant notifies a housing provider that the unit is unsafe for them and requests help, that request must be treated as a reasonable accommodation request under the Fair Housing Act and Texas Fair Housing Act.
- The provider should engage in an interactive process to identify a reasonable accommodation that allows the tenant an equal opportunity to use and enjoy housing.

What actually happened:

- I repeatedly informed Weinstein of my disabilities and the medical impact of the mold and provided supporting documentation.
- Instead of engaging in a meaningful interactive process, Weinstein moved toward non-renewal, litigation, and ultimately cutting off housing.

Why it matters:

- A request for safe housing in this context is not a “favor” – it is a request for a reasonable accommodation. Ignoring or resisting that request is an ongoing fair-housing problem, not just a lease issue.

STEP 3 – TEMPORARY HOUSING

What the law / best practice requires:

- When a unit is uninhabitable for a disabled tenant, a reasonable accommodation can include medically safe, ADA-compliant, comparable temporary housing (e.g., a furnished extended-stay arrangement that allows the tenant to lie flat, manage symptoms, have basic kitchen access, and accommodate children and assistance animals).
- Temporary housing should continue while the original unit remains unfit or until genuinely comparable housing is offered.

What actually happened:

- Tokio arranged temporary housing for a period, recognizing that my unit was not livable.
- On October 27, 2025, that housing was cut off even though the original unit remained unfit for human occupancy and remediation/contents issues were still unresolved.
- Since then, I have been effectively homeless, despite ongoing disability-related needs.

Why it matters:

- Cutting off housing midstream, while the original unit is still unsafe, is the opposite of a reasonable accommodation. It converts a partial attempt to comply into an ongoing failure to accommodate.

STEP 4 – CONTENTS AND MOLD COMPLIANCE

What the law / best practice requires:

- Mold protocols must be carried out by or under the supervision of properly licensed mold remediation professionals.
- A tenant’s belongings should be inventoried, triaged (salvageable vs. non-salvageable), and handled consistent with the protocol and state law, with clear communication to the tenant.

What actually happened:

- Most of my belongings were handed to Reign Restoration, which does not appear to hold a Texas mold remediation license, despite a protocol that requires licensed professionals.
- I have no complete inventory, no clear explanation of what has been done to my contents under the protocol, and no timeline for licensed compliance or safe retrieval/decision-making.

Why it matters:

- My property and evidence are at continuing risk of spoliation and mishandling, and the protocol your client relies on is not being followed in a way that complies with Texas law.

STEP 5 – USE OF THE COURTS

What the law / best practice requires:

- Courts should not be used as a vehicle to sidestep non-waivable statutory duties under the FHA, TFHA, ADA, § 504, or Texas Property Code.
- Requests for rent, possession, and scheduling should account for a landlord’s fair-housing obligations to a disabled tenant from an uninhabitable unit.

What actually happened:

- While these federal and state disability and fair-housing duties have been repeatedly raised, Plaintiffs continue to seek possession, rent, and a scheduling order as if this were a simple lease dispute.
- My motions for accommodations, referral to enforcement authorities, and appointment of counsel have not yet been addressed, while I remain without stable, medically appropriate housing.

Why it matters:

- It creates the risk that the Court will be used to enforce leverage that depends on ignoring fair-housing and disability obligations, rather than ensuring they are honored.

In light of Weinstein's size, in-house counsel, and public "Equal Housing Opportunity" representations, it is hard to reconcile my experience with the obligations outlined in the attached HUD/DOJ guidance. It gives the impression that a sophisticated landlord is using litigation and scheduling tactics to minimize housing and liability exposure, while treating its fair-housing and disability duties as optional.

Because my former unit was professionally deemed unfit for human occupancy and your client's insurer provided temporary housing until **October 27, 2025**, when that housing was cut off while remediation issues remained, I am again requesting that Weinstein provide **medically safe, ADA-compliant, comparable temporary housing** (for example, reasonable **furnished** hotel or extended-stay accommodations for 3 occupants and 2 dogs that meet my medical needs at no greater cost than a habitable unit would have been) pending the Court's ruling on my accommodations motion. If your client is willing to do so, I am open to discussing an agreed approach that could narrow or even resolve some of the issues set for December 12.

In addition, I need to address the status of my **personal property and contents**:

- As you know, most of my belongings are in the possession of **Reign Restoration**, which does not appear to hold a Texas mold remediation license, even though the protocol your client is using requires work to be performed or supervised by properly licensed professionals.
- Your client has known for some time that licensed professionals are required for mold-related remediation and contents handling, and TDLR's own materials confirm that unlicensed contractors cannot perform regulated mold remediation work.
- I still have no complete inventory of my contents, no clear explanation of what, if anything, has been done to my property under the protocol, and no timeline for when a licensed company will take over or when I will be allowed to make informed decisions about disposal, cleaning, or retrieval.

Given the ongoing risk of spoliation and the time-sensitive nature of mold and contents handling, please let me know, in writing:

1. Whether your client contends that Reign is authorized under Texas mold law to perform any of the tasks described in the protocol;
2. When your client intends to bring a properly licensed mold remediation company into compliance with the protocol as it relates to my contents; and
3. What the plan and timeline are for:
 - (a) providing me with a full inventory of my belongings,
 - (b) confirming which items your client concedes are non-salvageable, and
 - (c) allowing me access to or safe transfer of salvageable items handled in compliance with Texas law.

Because Ms. James asked me to confirm arrangements with the Court this afternoon, I would appreciate your client's position on these issues as soon as you are able.

Sincerely,

Katie Copeland

(817) 789-8498

K.M.Copeland@tcu.edu

From: Glynis Zavarelli <[gzavarelli@wandzlaw.com](mailto:gzarelli@wandzlaw.com)>

Date: Tuesday, December 2, 2025 at 2:58 PM

To: Copeland, Katie <K.M.COPELAND@tcu.edu>, Michelle Sortor <msortor@wandzlaw.com>

Subject: RE: Availability for Hearing Dec 5th – Motion for Statutorily Required Accommodations

[EXTERNAL EMAIL WARNING] DO NOT CLICK LINKS or open attachments unless you recognize the sender and know the content is safe.

Ms. Copeland:

I am following up on the below; it almost 3:00 and I have not heard back from you on the December 12 date. If that date does not work for you – please advise as to the other dates that were provided by Ms. James yesterday, for the Court's availability and we will check our schedules here. Also - if we can avoid the hearing on the Motion for Entry of Scheduling Order – please let me know that and please sign and return the Agreed version I sent to you earlier today, and I will then submit for signature and entry).

Glynis L. Zavarelli

Wentz & Zavarelli, LLP

3120 Sabre Drive, Suite 170

Southlake, Texas 76092

(469) 665-9100

Cell: (817) 832-3689

From: Glynis Zavarelli
Sent: Tuesday, December 2, 2025 11:45 AM
To: 'Copeland, Katie' <K.M.COPELAND@tcu.edu>; Michelle Sortor <msortor@wandzlaw.com>
Subject: RE: Availability for Hearing Dec 5th – Motion for Statutorily Required Accommodations

Ms. Copeland:

We are not available on December 5; but are available on December 12.

We would also like to have heard our Motion for Entry of Scheduling Order heard on the December 12 date (see attached, filed yesterday) -unless you will agree to same; in which case – please sign the Agreed version (see attached) and return to me – and I will submit to the Court for signature and entry.

Please confirm that the December 12 date works for you for the hearing you have requested and the hearing I have requested herein.

Thanks –

Glynis
Glynis L. Zavarelli
Wentz & Zavarelli, LLP
3120 Sabre Drive, Suite 170
Southlake, Texas 76092
(469) 665-9100
Cell: (817) 832-3689

From: Copeland, Katie <K.M.COPELAND@tcu.edu>
Sent: Tuesday, December 2, 2025 11:08 AM
To: Glynis Zavarelli <[gzavarelli@wandzlaw.com](mailto:gzarelli@wandzlaw.com)>; Michelle Sortor <msortor@wandzlaw.com>
Subject: Availability for Hearing Dec 5th – Motion for Statutorily Required Accommodations
Importance: High

Dear Counsel,

Could you please let me know whether you're available on **December 5, 2025 at 11:30 AM** for a hearing on my **Motion for Statutorily Required Accommodations**?

I need to get the scheduling finalized this afternoon, so a response by **3:30 PM** would be greatly appreciated.

Sincerely,

Katie Copeland
(817) 789-8498
K.M.Copeland@tcu.edu

PS: I am having issues with my CopelandLawTexas.com email address so please use this one until I get it sorted out.



U.S. DEPARTMENT OF JUSTICE
CIVIL RIGHTS DIVISION



U.S. DEPARTMENT OF HOUSING AND URBAN DEVELOPMENT
OFFICE OF FAIR HOUSING AND EQUAL OPPORTUNITY

Washington, D.C.
May 17, 2004

**JOINT STATEMENT OF
THE DEPARTMENT OF HOUSING AND URBAN DEVELOPMENT
AND THE DEPARTMENT OF JUSTICE**

***REASONABLE ACCOMMODATIONS UNDER THE
FAIR HOUSING ACT***

Introduction

The Department of Justice ("DOJ") and the Department of Housing and Urban Development ("HUD") are jointly responsible for enforcing the federal Fair Housing Act¹ (the "Act"), which prohibits discrimination in housing on the basis of race, color, religion, sex, national origin, familial status, and disability.² One type of disability discrimination prohibited by the Act is the refusal to make reasonable accommodations in rules, policies, practices, or services when such accommodations may be necessary to afford a person with a disability the equal opportunity to use and enjoy a dwelling.³ HUD and DOJ frequently respond to complaints alleging that housing providers have violated the Act by refusing reasonable accommodations to persons with disabilities. This Statement provides technical assistance regarding the rights and obligations of persons with disabilities and housing providers under the Act relating to

¹ The Fair Housing Act is codified at 42 U.S.C. §§ 3601 - 3619.

² The Act uses the term "handicap" instead of the term "disability." Both terms have the same legal meaning. See *Bragdon v. Abbott*, 524 U.S. 624, 631 (1998) (noting that definition of "disability" in the Americans with Disabilities Act is drawn almost verbatim "from the definition of 'handicap' contained in the Fair Housing Amendments Act of 1988"). This document uses the term "disability," which is more generally accepted.

³ 42 U.S.C. § 3604(f)(3)(B).

reasonable accommodations.⁴

Questions and Answers

1. What types of discrimination against persons with disabilities does the Act prohibit?

The Act prohibits housing providers from discriminating against applicants or residents because of their disability or the disability of anyone associated with them⁵ and from treating persons with disabilities less favorably than others because of their disability. The Act also makes it unlawful for any person to refuse “to make reasonable accommodations in rules, policies, practices, or services, when such accommodations may be necessary to afford ... person(s) [with disabilities] equal opportunity to use and enjoy a dwelling.”⁶ The Act also prohibits housing providers from refusing residency to persons with disabilities, or placing conditions on their residency, because those persons may require reasonable accommodations. In addition, in certain circumstances, the Act requires that housing providers allow residents to

⁴ Housing providers that receive federal financial assistance are also subject to the requirements of Section 504 of the Rehabilitation Act of 1973. 29 U.S.C. § 794. Section 504, and its implementing regulations at 24 C.F.R. Part 8, prohibit discrimination based on disability and require recipients of federal financial assistance to provide reasonable accommodations to applicants and residents with disabilities. Although Section 504 imposes greater obligations than the Fair Housing Act, (e.g., providing and paying for reasonable accommodations that involve structural modifications to units or public and common areas), the principles discussed in this Statement regarding reasonable accommodation under the Fair Housing Act generally apply to requests for reasonable accommodations to rules, policies, practices, and services under Section 504. See U.S. Department of Housing and Urban Development, Office of Public and Indian Housing, Notice PIH 2002-01(HA) (www.hud.gov/offices/fheo/disabilities/PIH02-01.pdf) and “Section 504: Frequently Asked Questions,” (www.hud.gov/offices/fheo/disabilities/sect504faq.cfm#anchor272118).

⁵ The Fair Housing Act’s protection against disability discrimination covers not only home seekers with disabilities but also buyers and renters without disabilities who live or are associated with individuals with disabilities 42 U.S.C. § 3604(f)(1)(B), 42 U.S.C. § 3604(f)(1)(C), 42 U.S.C. § 3604(f)(2)(B), 42 U.S.C. § (f)(2)(C). See also H.R. Rep. 100-711 – 24 (reprinted in 1988 U.S.C.A.N. 2173, 2184-85) (“The Committee intends these provisions to prohibit not only discrimination against the primary purchaser or named lessee, but also to prohibit denials of housing opportunities to applicants because they have children, parents, friends, spouses, roommates, patients, subtenants or other associates who have disabilities.”). *Accord*: Preamble to Proposed HUD Rules Implementing the Fair Housing Act, 53 Fed. Reg. 45001 (Nov. 7, 1988) (citing House Report).

⁶ 42 U.S.C. § 3604(f)(3)(B). HUD regulations pertaining to reasonable accommodations may be found at 24 C.F.R. § 100.204.

make reasonable structural modifications to units and public/common areas in a dwelling when those modifications may be necessary for a person with a disability to have full enjoyment of a dwelling.⁷ With certain limited exceptions (*see* response to question 2 below), the Act applies to privately and publicly owned housing, including housing subsidized by the federal government or rented through the use of Section 8 voucher assistance.

2. Who must comply with the Fair Housing Act's reasonable accommodation requirements?

Any person or entity engaging in prohibited conduct – *i.e.*, refusing to make reasonable accommodations in rules, policies, practices, or services, when such accommodations may be necessary to afford a person with a disability an equal opportunity to use and enjoy a dwelling – may be held liable unless they fall within an exception to the Act's coverage. Courts have applied the Act to individuals, corporations, associations and others involved in the provision of housing and residential lending, including property owners, housing managers, homeowners and condominium associations, lenders, real estate agents, and brokerage services. Courts have also applied the Act to state and local governments, most often in the context of exclusionary zoning or other land-use decisions. *See e.g.*, City of Edmonds v. Oxford House, Inc., 514 U.S. 725, 729 (1995); Project Life v. Glendening, 139 F. Supp. 703, 710 (D. Md. 2001), *aff'd* 2002 WL 2012545 (4th Cir. 2002). Under specific exceptions to the Fair Housing Act, the reasonable accommodation requirements of the Act do not apply to a private individual owner who sells his own home so long as he (1) does not own more than three single-family homes; (2) does not use a real estate agent and does not employ any discriminatory advertising or notices; (3) has not engaged in a similar sale of a home within a 24-month period; and (4) is not in the business of selling or renting dwellings. The reasonable accommodation requirements of the Fair Housing Act also do not apply to owner-occupied buildings that have four or fewer dwelling units.

3. Who qualifies as a person with a disability under the Act?

The Act defines a person with a disability to include (1) individuals with a physical or mental impairment that substantially limits one or more major life activities; (2) individuals who are regarded as having such an impairment; and (3) individuals with a record of such an impairment.

The term "physical or mental impairment" includes, but is not limited to, such diseases and conditions as orthopedic, visual, speech and hearing impairments, cerebral palsy, autism, epilepsy, muscular dystrophy, multiple sclerosis, cancer, heart disease, diabetes, Human Immunodeficiency Virus infection, mental retardation, emotional illness, drug addiction (other than addiction caused by current, illegal use of a controlled substance) and alcoholism.

⁷ This Statement does not address the principles relating to reasonable modifications. For further information see the HUD regulations at 24 C.F.R. § 100.203. This statement also does not address the additional requirements imposed on recipients of Federal financial assistance pursuant to Section 504, as explained in the Introduction.

The term "substantially limits" suggests that the limitation is "significant" or "to a large degree."

The term "major life activity" means those activities that are of central importance to daily life, such as seeing, hearing, walking, breathing, performing manual tasks, caring for one's self, learning, and speaking.⁸ This list of major life activities is not exhaustive. *See e.g., Bragdon v. Abbott*, 524 U.S. 624, 691-92 (1998)(holding that for certain individuals reproduction is a major life activity).

4. Does the Act protect juvenile offenders, sex offenders, persons who illegally use controlled substances, and persons with disabilities who pose a significant danger to others?

No, juvenile offenders and sex offenders, by virtue of that status, are not persons with disabilities protected by the Act. Similarly, while the Act does protect persons who are recovering from substance abuse, it does not protect persons who are currently engaging in the current illegal use of controlled substances.⁹ Additionally, the Act does not protect an individual with a disability whose tenancy would constitute a "direct threat" to the health or safety of other individuals or result in substantial physical damage to the property of others unless the threat can be eliminated or significantly reduced by reasonable accommodation.

5. How can a housing provider determine if an individual poses a direct threat?

The Act does not allow for exclusion of individuals based upon fear, speculation, or stereotype about a particular disability or persons with disabilities in general. A determination that an individual poses a direct threat must rely on an individualized assessment that is based on reliable objective evidence (*e.g.*, current conduct, or a recent history of overt acts). The assessment must consider: (1) the nature, duration, and severity of the risk of injury; (2) the probability that injury will actually occur; and (3) whether there are any reasonable accommodations that will eliminate the direct threat. Consequently, in evaluating a recent history of overt acts, a provider must take into account whether the individual has received intervening treatment or medication that has eliminated the direct threat (*i.e.*, a significant risk of substantial harm). In such a situation, the provider may request that the individual document

⁸ The Supreme Court has questioned but has not yet ruled on whether "working" is to be considered a major life activity. *See Toyota Motor Mfg. Kentucky, Inc. v. Williams*, 122 S. Ct. 681, 692, 693 (2002). If it is a major activity, the Court has noted that a claimant would be required to show an inability to work in a "broad range of jobs" rather than a specific job. *See Sutton v. United Airlines, Inc.*, 527 U.S. 470, 492 (1999).

⁹ *See, e.g., United States v. Southern Management Corp.*, 955 F.2d 914, 919 (4th Cir. 1992) (discussing exclusion in 42 U.S.C. § 3602(h) for "current, illegal use of or addiction to a controlled substance").

how the circumstances have changed so that he no longer poses a direct threat. A provider may also obtain satisfactory assurances that the individual will not pose a direct threat during the tenancy. The housing provider must have reliable, objective evidence that a person with a disability poses a direct threat before excluding him from housing on that basis.

Example 1: A housing provider requires all persons applying to rent an apartment to complete an application that includes information on the applicant's current place of residence. On her application to rent an apartment, a woman notes that she currently resides in Cambridge House. The manager of the apartment complex knows that Cambridge House is a group home for women receiving treatment for alcoholism. Based solely on that information and his personal belief that alcoholics are likely to cause disturbances and damage property, the manager rejects the applicant. The rejection is unlawful because it is based on a generalized stereotype related to a disability rather than an individualized assessment of any threat to other persons or the property of others based on reliable, objective evidence about the applicant's recent past conduct. The housing provider may not treat this applicant differently than other applicants based on his subjective perceptions of the potential problems posed by her alcoholism by requiring additional documents, imposing different lease terms, or requiring a higher security deposit. However, the manager could have checked this applicant's references to the same extent and in the same manner as he would have checked any other applicant's references. If such a reference check revealed objective evidence showing that this applicant had posed a direct threat to persons or property in the recent past and the direct threat had not been eliminated, the manager could then have rejected the applicant based on direct threat.

Example 2: James X, a tenant at the Shady Oaks apartment complex, is arrested for threatening his neighbor while brandishing a baseball bat. The Shady Oaks' lease agreement contains a term prohibiting tenants from threatening violence against other residents. Shady Oaks' rental manager investigates the incident and learns that James X threatened the other resident with physical violence and had to be physically restrained by other neighbors to keep him from acting on his threat. Following Shady Oaks' standard practice of strictly enforcing its "no threats" policy, the Shady Oaks rental manager issues James X a 30-day notice to quit, which is the first step in the eviction process. James X's attorney contacts Shady Oaks' rental manager and explains that James X has a psychiatric disability that causes him to be physically violent when he stops taking his prescribed medication. Suggesting that his client will not pose a direct threat to others if proper safeguards are taken, the attorney requests that the rental manager grant James X an exception to the "no threats" policy as a reasonable accommodation based on James X's disability. The Shady Oaks rental manager need only grant the reasonable accommodation if James X's attorney can provide satisfactory assurance that James X will receive appropriate counseling and

periodic medication monitoring so that he will no longer pose a direct threat during his tenancy. After consulting with James X, the attorney responds that James X is unwilling to receive counseling or submit to any type of periodic monitoring to ensure that he takes his prescribed medication. The rental manager may go forward with the eviction proceeding, since James X continues to pose a direct threat to the health or safety of other residents.

6. What is a "reasonable accommodation" for purposes of the Act?

A “reasonable accommodation” is a change, exception, or adjustment to a rule, policy, practice, or service that may be necessary for a person with a disability to have an equal opportunity to use and enjoy a dwelling, including public and common use spaces. Since rules, policies, practices, and services may have a different effect on persons with disabilities than on other persons, treating persons with disabilities exactly the same as others will sometimes deny them an equal opportunity to use and enjoy a dwelling. The Act makes it unlawful to refuse to make reasonable accommodations to rules, policies, practices, or services when such accommodations may be necessary to afford persons with disabilities an equal opportunity to use and enjoy a dwelling.

To show that a requested accommodation may be necessary, there must be an identifiable relationship, or nexus, between the requested accommodation and the individual’s disability.

Example 1: A housing provider has a policy of providing unassigned parking spaces to residents. A resident with a mobility impairment, who is substantially limited in her ability to walk, requests an assigned accessible parking space close to the entrance to her unit as a reasonable accommodation. There are available parking spaces near the entrance to her unit that are accessible, but those spaces are available to all residents on a first come, first served basis. The provider must make an exception to its policy of not providing assigned parking spaces to accommodate this resident.

Example 2: A housing provider has a policy of requiring tenants to come to the rental office in person to pay their rent. A tenant has a mental disability that makes her afraid to leave her unit. Because of her disability, she requests that she be permitted to have a friend mail her rent payment to the rental office as a reasonable accommodation. The provider must make an exception to its payment policy to accommodate this tenant.

Example 3: A housing provider has a "no pets" policy. A tenant who is deaf requests that the provider allow him to keep a dog in his unit as a reasonable accommodation. The tenant explains that the dog is an assistance animal that will alert him to several sounds, including knocks at the door, sounding of the smoke detector, the telephone ringing, and cars coming into the driveway. The housing

provider must make an exception to its “no pets” policy to accommodate this tenant.

7. Are there any instances when a provider can deny a request for a reasonable accommodation without violating the Act?

Yes. A housing provider can deny a request for a reasonable accommodation if the request was not made by or on behalf of a person with a disability or if there is no disability-related need for the accommodation. In addition, a request for a reasonable accommodation may be denied if providing the accommodation is not reasonable – *i.e.*, if it would impose an undue financial and administrative burden on the housing provider or it would fundamentally alter the nature of the provider's operations. The determination of undue financial and administrative burden must be made on a case-by-case basis involving various factors, such as the cost of the requested accommodation, the financial resources of the provider, the benefits that the accommodation would provide to the requester, and the availability of alternative accommodations that would effectively meet the requester's disability-related needs.

When a housing provider refuses a requested accommodation because it is not reasonable, the provider should discuss with the requester whether there is an alternative accommodation that would effectively address the requester's disability-related needs without a fundamental alteration to the provider's operations and without imposing an undue financial and administrative burden. If an alternative accommodation would effectively meet the requester's disability-related needs and is reasonable, the provider must grant it. An interactive process in which the housing provider and the requester discuss the requester's disability-related need for the requested accommodation and possible alternative accommodations is helpful to all concerned because it often results in an effective accommodation for the requester that does not pose an undue financial and administrative burden for the provider.

Example: As a result of a disability, a tenant is physically unable to open the dumpster placed in the parking lot by his housing provider for trash collection. The tenant requests that the housing provider send a maintenance staffperson to his apartment on a daily basis to collect his trash and take it to the dumpster. Because the housing development is a small operation with limited financial resources and the maintenance staff are on site only twice per week, it may be an undue financial and administrative burden for the housing provider to grant the requested daily trash pick-up service. Accordingly, the requested accommodation may not be reasonable. If the housing provider denies the requested accommodation as unreasonable, the housing provider should discuss with the tenant whether reasonable accommodations could be provided to meet the tenant's disability-related needs – for instance, placing an open trash collection can in a location that is readily accessible to the tenant so the tenant can dispose of his own trash and the provider's maintenance staff can then transfer the trash to the dumpster when they are on site. Such an accommodation would not involve a

fundamental alteration of the provider's operations and would involve little financial and administrative burden for the provider while accommodating the tenant's disability-related needs.

There may be instances where a provider believes that, while the accommodation requested by an individual is reasonable, there is an alternative accommodation that would be equally effective in meeting the individual's disability-related needs. In such a circumstance, the provider should discuss with the individual if she is willing to accept the alternative accommodation. However, providers should be aware that persons with disabilities typically have the most accurate knowledge about the functional limitations posed by their disability, and an individual is not obligated to accept an alternative accommodation suggested by the provider if she believes it will not meet her needs and her preferred accommodation is reasonable.

8. What is a “fundamental alteration”?

A "fundamental alteration" is a modification that alters the essential nature of a provider's operations.

Example: A tenant has a severe mobility impairment that substantially limits his ability to walk. He asks his housing provider to transport him to the grocery store and assist him with his grocery shopping as a reasonable accommodation to his disability. The provider does not provide any transportation or shopping services for its tenants, so granting this request would require a fundamental alteration in the nature of the provider's operations. The request can be denied, but the provider should discuss with the requester whether there is any alternative accommodation that would effectively meet the requester's disability-related needs without fundamentally altering the nature of its operations, such as reducing the tenant's need to walk long distances by altering its parking policy to allow a volunteer from a local community service organization to park her car close to the tenant's unit so she can transport the tenant to the grocery store and assist him with his shopping.

9. What happens if providing a requested accommodation involves some costs on the part of the housing provider?

Courts have ruled that the Act may require a housing provider to grant a reasonable accommodation that involves costs, so long as the reasonable accommodation does not pose an undue financial and administrative burden and the requested accommodation does not constitute a fundamental alteration of the provider's operations. The financial resources of the provider, the cost of the reasonable accommodation, the benefits to the requester of the requested accommodation, and the availability of other, less expensive alternative accommodations that would effectively meet the applicant or resident's disability-related needs must be considered in determining whether a requested accommodation poses an undue financial and administrative

burden.

10. What happens if no agreement can be reached through the interactive process?

A failure to reach an agreement on an accommodation request is in effect a decision by the provider not to grant the requested accommodation. If the individual who was denied an accommodation files a Fair Housing Act complaint to challenge that decision, then the agency or court receiving the complaint will review the evidence in light of applicable law and decide if the housing provider violated that law. For more information about the complaint process, see question 19 below.

11. May a housing provider charge an extra fee or require an additional deposit from applicants or residents with disabilities as a condition of granting a reasonable accommodation?

No. Housing providers may not require persons with disabilities to pay extra fees or deposits as a condition of receiving a reasonable accommodation.

Example 1: A man who is substantially limited in his ability to walk uses a motorized scooter for mobility purposes. He applies to live in an assisted living facility that has a policy prohibiting the use of motorized vehicles in buildings and elsewhere on the premises. It would be a reasonable accommodation for the facility to make an exception to this policy to permit the man to use his motorized scooter on the premises for mobility purposes. Since allowing the man to use his scooter in the buildings and elsewhere on the premises is a reasonable accommodation, the facility may not condition his use of the scooter on payment of a fee or deposit or on a requirement that he obtain liability insurance relating to the use of the scooter. However, since the Fair Housing Act does not protect any person with a disability who poses a direct threat to the person or property of others, the man must operate his motorized scooter in a responsible manner that does not pose a significant risk to the safety of other persons and does not cause damage to other persons' property. If the individual's use of the scooter causes damage to his unit or the common areas, the housing provider may charge him for the cost of repairing the damage (or deduct it from the standard security deposit imposed on all tenants), if it is the provider's practice to assess tenants for any damage they cause to the premises.

Example 2: Because of his disability, an applicant with a hearing impairment needs to keep an assistance animal in his unit as a reasonable accommodation. The housing provider may not require the applicant to pay a fee or a security deposit as a condition of allowing the applicant to keep the assistance animal. However, if a tenant's assistance animal causes damage to the applicant's unit or the common areas of the dwelling, the housing provider may charge the tenant for

the cost of repairing the damage (or deduct it from the standard security deposit imposed on all tenants), if it is the provider's practice to assess tenants for any damage they cause to the premises.

12. When and how should an individual request an accommodation?

Under the Act, a resident or an applicant for housing makes a reasonable accommodation request whenever she makes clear to the housing provider that she is requesting an exception, change, or adjustment to a rule, policy, practice, or service because of her disability. She should explain what type of accommodation she is requesting and, if the need for the accommodation is not readily apparent or not known to the provider, explain the relationship between the requested accommodation and her disability.

An applicant or resident is not entitled to receive a reasonable accommodation unless she requests one. However, the Fair Housing Act does not require that a request be made in a particular manner or at a particular time. A person with a disability need not personally make the reasonable accommodation request; the request can be made by a family member or someone else who is acting on her behalf. An individual making a reasonable accommodation request does not need to mention the Act or use the words "reasonable accommodation." However, the requester must make the request in a manner that a reasonable person would understand to be a request for an exception, change, or adjustment to a rule, policy, practice, or service because of a disability.

Although a reasonable accommodation request can be made orally or in writing, it is usually helpful for both the resident and the housing provider if the request is made in writing. This will help prevent misunderstandings regarding what is being requested, or whether the request was made. To facilitate the processing and consideration of the request, residents or prospective residents may wish to check with a housing provider in advance to determine if the provider has a preference regarding the manner in which the request is made. However, housing providers must give appropriate consideration to reasonable accommodation requests even if the requester makes the request orally or does not use the provider's preferred forms or procedures for making such requests.

Example: A tenant in a large apartment building makes an oral request that she be assigned a mailbox in a location that she can easily access because of a physical disability that limits her ability to reach and bend. The provider would prefer that the tenant make the accommodation request on a pre-printed form, but the tenant fails to complete the form. The provider must consider the reasonable accommodation request even though the tenant would not use the provider's designated form.

13. Must a housing provider adopt formal procedures for processing requests for a reasonable accommodation?

No. The Act does not require that a housing provider adopt any formal procedures for reasonable accommodation requests. However, having formal procedures may aid individuals with disabilities in making requests for reasonable accommodations and may aid housing providers in assessing those requests so that there are no misunderstandings as to the nature of the request, and, in the event of later disputes, provide records to show that the requests received proper consideration.

A provider may not refuse a request, however, because the individual making the request did not follow any formal procedures that the provider has adopted. If a provider adopts formal procedures for processing reasonable accommodation requests, the provider should ensure that the procedures, including any forms used, do not seek information that is not necessary to evaluate if a reasonable accommodation may be needed to afford a person with a disability equal opportunity to use and enjoy a dwelling. See Questions 16 - 18, which discuss the disability-related information that a provider may and may not request for the purposes of evaluating a reasonable accommodation request.

14. Is a housing provider obligated to provide a reasonable accommodation to a resident or applicant if an accommodation has not been requested?

No. A housing provider is only obligated to provide a reasonable accommodation to a resident or applicant if a request for the accommodation has been made. A provider has notice that a reasonable accommodation request has been made if a person, her family member, or someone acting on her behalf requests a change, exception, or adjustment to a rule, policy, practice, or service because of a disability, even if the words “reasonable accommodation” are not used as part of the request.

15. What if a housing provider fails to act promptly on a reasonable accommodation request?

A provider has an obligation to provide prompt responses to reasonable accommodation requests. An undue delay in responding to a reasonable accommodation request may be deemed to be a failure to provide a reasonable accommodation.

16. What inquiries, if any, may a housing provider make of current or potential residents regarding the existence of a disability when they have not asked for an accommodation?

Under the Fair Housing Act, it is usually unlawful for a housing provider to (1) ask if an applicant for a dwelling has a disability or if a person intending to reside in a dwelling or anyone associated with an applicant or resident has a disability, or (2) ask about the nature or severity of such persons' disabilities. Housing providers may, however, make the following inquiries, provided these inquiries are made of all applicants, including those with and without disabilities:

- An inquiry into an applicant's ability to meet the requirements of tenancy;
- An inquiry to determine if an applicant is a current illegal abuser or addict of a controlled substance;
- An inquiry to determine if an applicant qualifies for a dwelling legally available only to persons with a disability or to persons with a particular type of disability; and
- An inquiry to determine if an applicant qualifies for housing that is legally available on a priority basis to persons with disabilities or to persons with a particular disability.

Example 1: A housing provider offers accessible units to persons with disabilities needing the features of these units on a priority basis. The provider may ask applicants if they have a disability and if, in light of their disability, they will benefit from the features of the units. However, the provider may not ask applicants if they have other types of physical or mental impairments. If the applicant's disability and the need for the accessible features are not readily apparent, the provider may request reliable information/documentation of the disability-related need for an accessible unit.

Example 2: A housing provider operates housing that is legally limited to persons with chronic mental illness. The provider may ask applicants for information needed to determine if they have a mental disability that would qualify them for the housing. However, in this circumstance, the provider may not ask applicants if they have other types of physical or mental impairments. If it is not readily apparent that an applicant has a chronic mental disability, the provider may request reliable information/documentation of the mental disability needed to qualify for the housing.

In some instances, a provider may also request certain information about an applicant's or a resident's disability if the applicant or resident requests a reasonable accommodation. See Questions 17 and 18 below.

17. What kinds of information, if any, may a housing provider request from a person with an obvious or known disability who is requesting a reasonable accommodation?

A provider is entitled to obtain information that is necessary to evaluate if a requested reasonable accommodation may be necessary because of a disability. If a person's disability is obvious, or otherwise known to the provider, and if the need for the requested accommodation is also readily apparent or known, then the provider may not request any additional information

about the requester's disability or the disability-related need for the accommodation.

If the requester's disability is known or readily apparent to the provider, but the need for the accommodation is not readily apparent or known, the provider may request only information that is necessary to evaluate the disability-related need for the accommodation.

Example 1: An applicant with an obvious mobility impairment who regularly uses a walker to move around asks her housing provider to assign her a parking space near the entrance to the building instead of a space located in another part of the parking lot. Since the physical disability (*i.e.*, difficulty walking) and the disability-related need for the requested accommodation are both readily apparent, the provider may not require the applicant to provide any additional information about her disability or the need for the requested accommodation.

Example 2: A rental applicant who uses a wheelchair advises a housing provider that he wishes to keep an assistance dog in his unit even though the provider has a "no pets" policy. The applicant's disability is readily apparent but the need for an assistance animal is not obvious to the provider. The housing provider may ask the applicant to provide information about the disability-related need for the dog.

Example 3: An applicant with an obvious vision impairment requests that the leasing agent provide assistance to her in filling out the rental application form as a reasonable accommodation because of her disability. The housing provider may not require the applicant to document the existence of her vision impairment.

18. If a disability is not obvious, what kinds of information may a housing provider request from the person with a disability in support of a requested accommodation?

A housing provider may not ordinarily inquire as to the nature and severity of an individual's disability (*see* Answer 16, above). However, in response to a request for a reasonable accommodation, a housing provider may request reliable disability-related information that (1) is necessary to verify that the person meets the Act's definition of disability (*i.e.*, has a physical or mental impairment that substantially limits one or more major life activities), (2) describes the needed accommodation, and (3) shows the relationship between the person's disability and the need for the requested accommodation. Depending on the individual's circumstances, information verifying that the person meets the Act's definition of disability can usually be provided by the individual himself or herself (*e.g.*, proof that an individual under 65 years of age receives Supplemental Security Income or Social Security Disability Insurance benefits¹⁰ or a credible statement by the individual). A doctor or other

¹⁰ Persons who meet the definition of disability for purposes of receiving Supplemental Security Income ("SSI") or Social Security Disability Insurance ("SSDI") benefits in most cases meet the definition of disability under the Fair Housing Act, although the converse may not be true. *See e.g., Cleveland v. Policy Management Systems Corp.*, 526 U.S. 795, 797 (1999)

medical professional, a peer support group, a non-medical service agency, or a reliable third party who is in a position to know about the individual's disability may also provide verification of a disability. In most cases, an individual's medical records or detailed information about the nature of a person's disability is not necessary for this inquiry.

Once a housing provider has established that a person meets the Act's definition of disability, the provider's request for documentation should seek only the information that is necessary to evaluate if the reasonable accommodation is needed because of a disability. Such information must be kept confidential and must not be shared with other persons unless they need the information to make or assess a decision to grant or deny a reasonable accommodation request or unless disclosure is required by law (*e.g.*, a court-issued subpoena requiring disclosure).

19. If a person believes she has been unlawfully denied a reasonable accommodation, what should that person do if she wishes to challenge that denial under the Act?

When a person with a disability believes that she has been subjected to a discriminatory housing practice, including a provider's wrongful denial of a request for reasonable accommodation, she may file a complaint with HUD within one year after the alleged denial or may file a lawsuit in federal district court within two years of the alleged denial. If a complaint is filed with HUD, HUD will investigate the complaint at no cost to the person with a disability.

There are several ways that a person may file a complaint with HUD:

- By placing a toll-free call to 1-800-669-9777 or TTY 1-800-927-9275;
- By completing the "on-line" complaint form available on the HUD internet site: <http://www.hud.gov>; or
- By mailing a completed complaint form or letter to:

Office of Fair Housing and Equal Opportunity
Department of Housing & Urban Development
451 Seventh Street, S.W., Room 5204
Washington, DC 20410-2000

(noting that SSDI provides benefits to a person with a disability so severe that she is unable to do her previous work and cannot engage in any other kind of substantial gainful work whereas a person pursuing an action for disability discrimination under the Americans with Disabilities Act may state a claim that "with a reasonable accommodation" she could perform the essential functions of the job).

Upon request, HUD will provide printed materials in alternate formats (large print, audio tapes, or Braille) and provide complainants with assistance in reading and completing forms.

The Civil Rights Division of the Justice Department brings lawsuits in federal courts across the country to end discriminatory practices and to seek monetary and other relief for individuals whose rights under the Fair Housing Act have been violated. The Civil Rights Division initiates lawsuits when it has reason to believe that a person or entity is involved in a "pattern or practice" of discrimination or when there has been a denial of rights to a group of persons that raises an issue of general public importance. The Division also participates as *amicus curiae* in federal court cases that raise important legal questions involving the application and/or interpretation of the Act. To alert the Justice Department to matters involving a pattern or practice of discrimination, matters involving the denial of rights to groups of persons, or lawsuits raising issues that may be appropriate for *amicus* participation, contact:

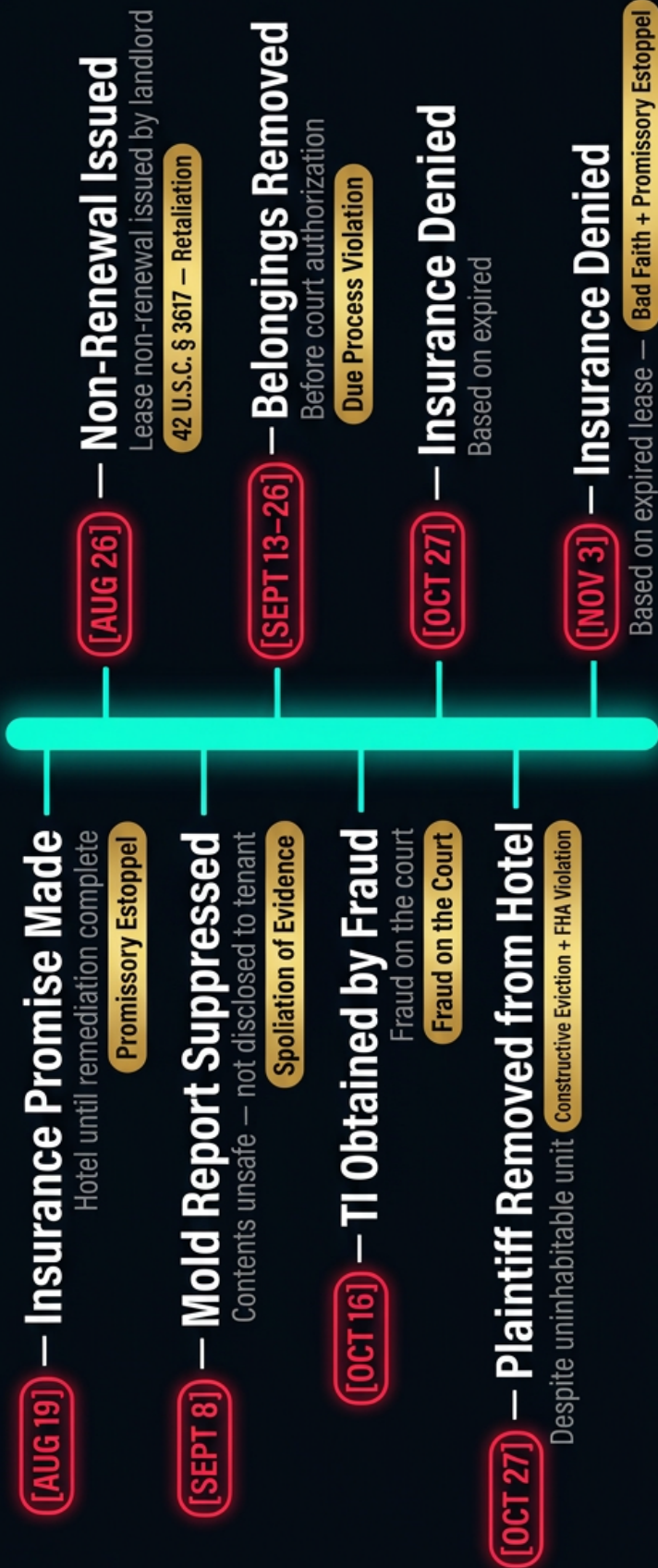
U.S. Department of Justice
Civil Rights Division
Housing and Civil Enforcement Section – G St.
950 Pennsylvania Avenue, N.W.
Washington, DC 20530

For more information on the types of housing discrimination cases handled by the Civil Rights Division, please refer to the Housing and Civil Enforcement Section's website at <http://www.usdoj.gov/crt/housing/hcehome.html>.

A HUD or Department of Justice decision not to proceed with a Fair Housing Act matter does not foreclose private plaintiffs from pursuing a private lawsuit. However, litigation can be an expensive, time-consuming, and uncertain process for all parties. HUD and the Department of Justice encourage parties to Fair Housing Act disputes to explore all reasonable alternatives to litigation, including alternative dispute resolution procedures, such as mediation. HUD attempts to conciliate all Fair Housing Act complaints. In addition, it is the Department of Justice's policy to offer prospective defendants the opportunity to engage in pre-suit settlement negotiations, except in the most unusual circumstances.

COORDINATED BAD FAITH: A FEDERAL TIMELINE

Every Action Triggered a Federal Violation. Every Violation Was Deliberate.



FEDERAL LAW OVERRIDE

Failure to Accommodate
42 U.S.C. § 3604(f)(3)(B)

Retaliation —
42 U.S.C. § 3617

Constructive Eviction
— Unsafe + Disability

ADA Violations —
28 C.F.R. §§ 35.130,
35.160, 35.134

Court Must Enforce —
Supremacy Clause

**Retaliation &
ADA/FHA Violations**

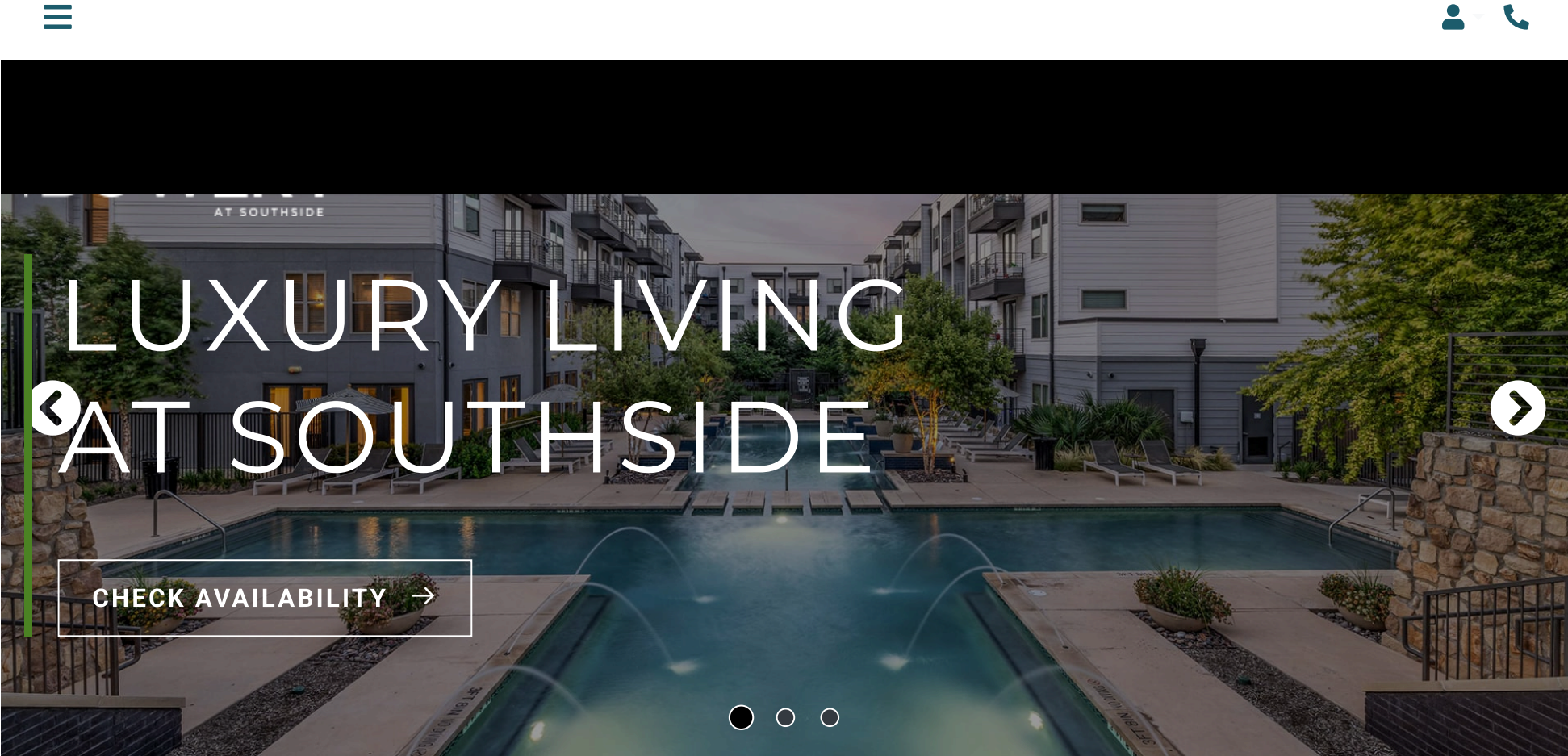
**Fraud on
the Court**

**Spoliation of
Evidence**

**Constructive
Eviction**

**Bad Faith &
Promissory Estoppel**

THE QUESTION IS NOT WHETHER THE COURT SHOULD GRANT RELIEF — IT IS WHAT RELIEF THE LAW ALREADY REQUIRES.



1 & 2 BEDROOM APARTMENTS IN FORT WORTH

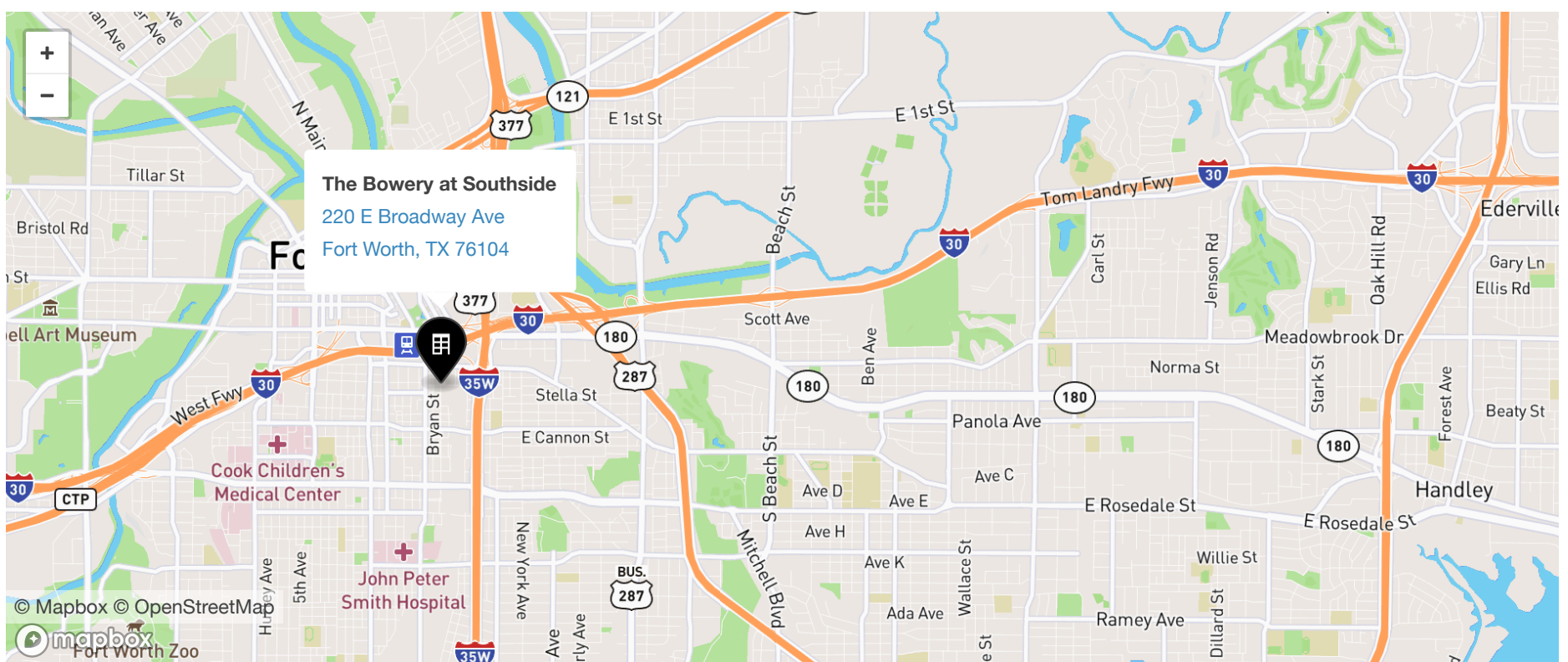
Welcome to The Bowery at Southside apartments in Fort Worth, where luxury and comfort converge with outstanding amenities. Take a refreshing dip in our resort-style pool, complete with a sundeck and lounge chairs for basking in the Texas sun. Stay active in our state-of-the-art fitness center, equipped with modern cardio and strength-training equipment.

For those seeking relaxation, our rooftop lounge provides stunning city views, offering an ideal setting for unwinding under the stars. Our resident clubhouse, featuring a fully equipped catering kitchen and billiards table, is perfect for hosting one of our many resident events.

In addition to these features, our pet-friendly community boasts a dog park to ensure your furry companions feel at home. With 24-hour emergency maintenance and a dedicated management team, we prioritize your comfort and convenience. Experience elevated living with our exceptional amenities at The Bowery at Southside Apartments.

[VIEW PHOTOS](#) →





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Saturday: 10 AM - 5 PM
Sunday: Closed
Walk-ins welcome!

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[The Bowery at Southside](#)
[220 E Broadway Ave](#)
[Fort Worth, TX 76104](#)



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Copeland/Weinstein

From: Glynis Zavarelli
gzavarelli@wandzlaw.com

To: Katie Copeland
katie@copelandlawtexas.com

Cc: Michelle Sortor
msortor@wandzlaw.com

On: Wednesday, January 21, 2026 at 9:39:38 AM

Ms. Copeland:

Please be advised that the remediation and repair work has been completed on Apt. 2145.

Thank you -

Glynis L. Zavarelli
Wentz & Zavarelli, LLP
3120 Sabre Drive, Suite 170
Southlake, Texas 76092
(469) 665-9100
Cell: (817) 832-3689

Subject: RE: Stowers Notice and Settlement Demand – Claim No. 1722960 (Weinstein Management / WMCI Dallas X)
Date: Thursday, November 6, 2025 at 9:35:30 AM Central Standard Time
From: Brochstein, Amye
To: katie@copelandlawtexas.com

Ms. Copeland,

We are in receipt of your demand and will be evaluating and responding to same.

Thanks,

Amye

Amye R. Brochstein, Esq.

Senior Claims Specialist
Philadelphia Insurance Companies
A Member of the Tokio Marine Group

100 Princeton South Corporate Center, Suite 350 | Ewing, NJ 08626
O: 609.512.4510 | amyebrochstein@phly.com
ThinkPHLY.com – Find out why you should **ThinkPHLY** first

From: katie@copelandlawtexas.com <katie@copelandlawtexas.com>
Sent: Thursday, November 6, 2025 12:50 AM
To: Claim Mail-Prod <claimmail@phly.com>
Cc: Brochstein, Amye <Amye.Brochstein@phly.com>
Subject: Stowers Notice and Settlement Demand – Claim No. 1722960 (Weinstein Management / WMCI Dallas X)

You don't often get email from katie@copelandlawtexas.com. [Learn why this is important](#)
CAUTION: Be mindful prior to opening non-TMNA attachments and/or links.

Dear Claims Management and Ms. Brochstein,

Please see the attached **Third-Party Stowers Notice and Settlement Demand** regarding the above-referenced claim and pending litigation in the 141st Judicial District Court, Tarrant County, Texas.

This correspondence formally places Tokio Marine Specialty Insurance Company on notice of its duty under ***G.A. Stowers Furniture Co. v. American Indemnity Co.***, 15 S.W.2d 544 (Tex. Comm'n App. 1929, holding approved), to evaluate and settle within policy limits where liability is clear and damages exceed available coverage.

The letter outlines the factual record, current admissions, and supporting documentation establishing clear liability and damages well above the \$5,000,000

THIRD-PARTY STOWERS NOTICE AND SETTLEMENT DEMAND

Date: November 5, 2025

TO:

Tokio Marine Specialty Insurance Company
Claims Department - Management
P.O. Box 950
Bala Cynwyd, PA 19004
Email: claimmail@phly.com

ATTN: Claims Supervisor / Manager

CC: Amye R. Brochstein, Senior Claims Specialist

RE:

Insured: Weinstein Management Company, Inc. and WMCI Dallas XC, LLC

Claimant: Kathryn Copeland

Claim No.: 1722960

Policy No.: PPK2284661-005

Lawsuit: Cause No. 141-370402-25, 141st Judicial District, Tarrant County, Texas

Policy Limits: \$5,000,000

I. PURPOSE OF THIS NOTICE

I am Kathryn Copeland, the claimant and counter-plaintiff in the above-referenced lawsuit against your insureds Weinstein Management Company, Inc. and WMCI Dallas XC, LLC.

The purpose of this letter is to:

1. **Notify you** of the substantial claim against your insureds
2. **Demonstrate** that liability is clear and damages likely exceed your policy limits
3. **Demand** that you investigate thoroughly and extend a settlement offer within policy limits
4. **Warn you** that failure to settle within policy limits will expose your company to personal liability for any excess judgment under the *Stowers* doctrine

This notice is provided pursuant to *G.A. Stowers Furniture Co. v. American Indem. Co.*, 15 S.W.2d 544 (Tex. Comm'n App. 1929, holding approved).

II. FACTUAL BACKGROUND

A. The Toxic Mold and Uninhabitable Conditions

On June 18, 2025, licensed mold assessor Kyle Reist (Texas Department of Licensing and Regulation #MAC1742) declared my apartment at 405 Crawford Street, Apt. 2145, Fort Worth, Texas 76102 "**UNFIT FOR HUMAN OCCUPANCY**" due to toxic mold contamination.

A second professional assessment by Dallas Mold Consultants on September 8, 2025 found:

- **"ALL contents in the apartment should be considered CONTAMINATED"**
- **"Heavy concentration of Chaetomium mold spores"** throughout the unit
- **"No equipment on site"** and **"no negative pressure on containment"**
- Chaetomium is **"associated with long-term water damage"**

B. Your Insureds' Admissions

In their sworn Answer filed October 20, 2025, your insureds admit:

1. They paid **"exceeds \$40,000.00"** for my hotel displacement
2. **"Remediation work continues"** (as of October 20, still not complete)
3. They **"relocated [me] to high-end hotel [paid for by Plaintiffs]"**
4. **"Per September 4 assessment, contents had to be removed"**

These admissions establish:

- The unit was uninhabitable (they paid \$40K+ for displacement)
- They had a duty to repair (Texas Property Code § 92.056)
- They breached that duty (remediation still incomplete 4+ months later)
- They committed criminal self-help (removed contents without court order)

C. Criminal Self-Help

Your insureds removed all my personal property between September 4-26, 2025 **without a court order**. They did not file for a Temporary Restraining Order until September 19, 2025 - **15 days AFTER** removal began. The Temporary Injunction was not granted until October 16, 2025 - **42 days AFTER** removal began.

This constitutes unlawful self-help under Texas Property Code § 92.0081, which is a **Class C misdemeanor** and subjects your insureds to statutory damages and attorney's fees.

D. Fraud on the Court

Your insureds' counsel possessed the September 8, 2025 Dallas Mold report showing **"NO equipment on site"** when they appeared at the October 16, 2025 Temporary Injunction hearing claiming I was "obstructing remediation work." They did not disclose this material evidence to the Court. This conduct may constitute fraud on the court and could subject your insureds to sanctions or punitive damages.

E. My Permanent Injuries

I have suffered permanent injuries from the toxic mold exposure:

1. **Brain injury** - Dr. Alfred Johnson: "bedridden 18 hours per day"
2. **Vision loss** - Dr. Michael Conte: "mold-related vision deterioration"
3. **Neurological dysfunction** - Dr. Isabel Huang
4. **Risk of systemic decline** - Dr. Kim Tran

I am **40 years old** (DOB: 6/28/1985). These are **lifetime** injuries requiring ongoing medical care, therapy, and monitoring for the next 40+ years.

III. LIABILITY IS CLEAR

Your insureds are liable under multiple legal theories, all covered by your Commercial General Liability policy:

A. Texas Property Code § 92.056 (Landlord's Duty to Repair)

- Duty: Repair conditions materially affecting health/safety
- Breach: Professional declared unit "unfit," still not repaired 4+ months later
- Causation: Mold exposure caused permanent injuries
- Damages: Economic, non-economic, statutory

B. Constructive Eviction

- Unit uninhabitable (professional assessment)
- I was forced to vacate (displaced 4+ months)
- Your insureds prevented return (no clearance certificate)

C. Texas Property Code § 92.0081 (Unlawful Self-Help)

- Property removed 15-42 days before court order
- Class C misdemeanor
- Statutory penalties: \$2,000 + one month's rent + attorney's fees

D. Retaliation (Texas Property Code § 92.331)

- I reported code violations (mold, habitability)
- Your insureds retaliated by non-renewing lease
- Statutory penalties: one month's rent + \$500 + attorney's fees

E. DTPA Violations (Texas Bus. & Com. Code § 17.50)

- False/misleading representations about habitability
- Failure to disclose known defects
- Unconscionable actions
- **Treble damages** available

F. Negligence

- Duty: Maintain habitable premises
- Breach: Allowed toxic mold to persist for years
- Causation: Mold caused permanent injuries
- Damages: Economic + non-economic

G. Punitive Damages Available

- Criminal self-help (property removed before court order)
 - Fraud on court (concealing Sept 8 report)
 - Gross negligence (ignoring professional "unfit" determination)
-

IV. DAMAGES EXCEED YOUR POLICY LIMITS**A. Economic Damages: \$1,894,694**

Category	Amount	Evidence
Rent abatement	\$53,724	22 months uninhabitable
Housing displacement	\$130,000	Your insureds admit "\$40K+," future costs \$90K
Medical - past	\$62,200	Therapy interrupted, treatment
Medical - future	\$850,000	Permanent brain injury, vision loss, neurological care (40+ years)
Lost wages - past	\$45,000	Unable to work Jan 2024-present
Lost earning capacity	\$400,000	Disabled at age 40, 25+ years remaining work life
Property loss	\$14,000	"ALL contents contaminated"
Dog boarding	\$11,770	Forced displacement of ESAs
Other	\$28,000	Moving, storage, utilities
TOTAL ECONOMIC	\$1,894,694	

B. Non-Economic Damages: \$1,800,000

- Pain & suffering (permanent injuries, 40+ years): \$1,000,000
- Emotional distress (homeless with 2 children): \$400,000
- Loss of enjoyment of life: \$300,000
- Impact on children: \$100,000

C. DTPA Treble Damages: \$3,489,000

Economic damages subject to trebling under DTPA § 17.50 for intentional/knowing violations:

- $\$1,163,000 \times 3 = \mathbf{\$3,489,000}$

D. Statutory Penalties: \$6,384

- Self-help: \$3,442
- Retaliation: \$2,942

E. Punitive Damages: \$1,000,000 - \$2,000,000

- Criminal conduct (self-help)
- Fraud on court
- Gross negligence

F. Attorney's Fees: \$300,000 - \$500,000

Recoverable under 6+ statutes

V. TOTAL EXPOSURE

Base Damages: \$3,694,694

DTPA Treble: \$3,489,000

Statutory: \$6,384

Punitive: \$1,000,000 - \$2,000,000

Attorney's Fees: \$300,000 - \$500,000

TOTAL: \$8,490,078 - \$9,990,078

Your Policy Limits: \$5,000,000

Stowers Excess Exposure: \$3,490,078 - \$4,990,078

VI. YOUR STOWERS DUTY

Under *Stowers*, when:

1. The claim against the insured is within policy coverage ✓
2. The demand is within policy limits ✓
3. The terms of the demand are such that an ordinarily prudent insurer would accept it ✓

You have a duty to accept the settlement demand or risk personal liability for any excess judgment.

All three *Stowers* elements are satisfied here:

1. **Coverage:** Commercial General Liability covers premises liability, negligence, property damage
2. **Demand within limits:** I am demanding the full \$5,000,000 policy limits (see below)
3. **Ordinarily prudent insurer would accept:** Liability is clear (professional reports, admissions, criminal conduct), damages far exceed limits

VII. INDEPENDENT BAD FAITH CLAIM AGAINST TOKIO MARINE

Beyond the *Stowers* issue, **your company faces independent bad faith liability** arising from your adjuster's conduct:

The August 15, 2025 Promise

Your adjuster, Amye R. Brochstein, wrote to me on August 15, 2025:

"The temporary housing/hotel will be **extended until the remediation is completed.**"

This was an **unconditional promise**. At that time, I had an active monthly lease in good standing. I relied on this promise.

The 11-Day Coordination

Eleven days later - August 26, 2025 - your insureds sent me a lease non-renewal notice. This **11-day gap** between your promise and their non-renewal establishes coordination between your company, your insureds, and their counsel to cut off coverage.

The November 3, 2025 Breach

On November 3, 2025, Ms. Brochstein refused to honor your promise, writing:

"As your lease expired on October 26, 2025, there is **no further obligation.**"

But remediation is **still not complete**:

- No clearance certificate issued for the unit
- No clearance certificate issued for my belongings
- Your insureds admit in their October 20 Answer: "**remediation work continues**"

Bad Faith Liability

This conduct constitutes bad faith under Texas Insurance Code § 541.060:

- False/misleading representation (Aug 15 promise you didn't intend to keep)
- Failure to acknowledge claim (Nov 3 refusal)
- Refusal to pay claim without proper investigation
- Knowing violation of Insurance Code

Damages for Bad Faith:

- Economic losses from breach: \$619,000
- **Treble damages** under § 541.060: \$1,857,000
- **18% interest** from date of breach: compounding
- Attorney's fees: \$300,000+
- Punitive damages: \$500,000+

Total Independent Bad Faith Exposure: \$3,000,000 - \$4,000,000

This is **separate from and in addition to** the underlying *Stowers* exposure.

VIII. REGULATORY EXPOSURE

I have filed complaints with:

1. **Texas Department of Insurance (TDI)**
 - At least 4 violations of Insurance Code Chapter 541
 - Penalties: 100,000+
 - Potential consent order, increased scrutiny
 2. **U.S. Department of Housing and Urban Development (HUD)**
 - Fair Housing Act violations (disability discrimination)
 - Penalties: \$75,000+ (first offense)
 - Consent decree, monitoring
-

IX. TRIAL CONSIDERATIONS

Trial Date: May 11, 2026 (6 months away)

Venue: 141st District Court, Tarrant County, Texas

Type: Jury trial

Jury Appeal Factors:

1. Sympathetic plaintiff:

- Disabled woman with permanent brain injury and vision loss
- 40 years old with 40+ years of suffering ahead
- Homeless with two minor children
- Daughter has medical emergency (ARFID, weight at 3rd percentile)
- Bedridden 18 hours per day

2. Unsympathetic defendants:

- Large property management company
- Ignored professional "unfit for human occupancy" determination
- Removed property before getting court order (criminal)
- Concealed evidence from court (fraud)
- Broke written promise (Aug 15)

3. Documentary evidence:

- Two licensed professional mold reports (irrefutable)
- Written insurance promise (Aug 15 - undeniable)
- Defendants' sworn admissions ("exceeds \$40K," "remediation continues")
- Timeline showing 11-day coordination

4. Punitive damages likely:

- Criminal self-help
- Fraud on court
- Multiple treble damage statutes

Verdict Risk: \$10,000,000 - \$12,000,000

X. SETTLEMENT DEMAND

I hereby demand that Tokio Marine tender the full policy limits of \$5,000,000 to settle all claims against your insureds Weinstein Management Company, Inc. and WMCI Dallas XC, LLC.

Demand Terms:

Amount: \$5,000,000 (full policy limits)

Allocation:

- Kathryn Copeland: 100%

- No subrogation rights against Copeland
- Full release of insureds only (not Tokio Marine for independent bad faith)

Deadline: December 3, 2025 (28 days from date of this letter)

Acceptance: Must be unconditional tender of full \$5,000,000

Conditions for Release:

In exchange for \$5,000,000, I will:

1. Release your insureds (Weinstein Management and WMCI Dallas XC) from all claims arising from this matter
2. Dismiss with prejudice the counterclaims against your insureds
3. Execute mutual releases

I will **NOT** release:

- Tokio Marine (independent bad faith claim preserved)
- Amye R. Brochstein (individual bad faith claim preserved)
- Defense counsel (fraud on court claims preserved)

XI. CONSEQUENCES OF REFUSAL

If you refuse this demand or allow it to expire without acceptance:

A. Stowers Excess Judgment

Any judgment exceeding \$5,000,000 will be **your company's personal liability**. Based on the evidence, a verdict of \$10M-\$12M is likely.

B. Independent Bad Faith Lawsuit

I will file a separate lawsuit against Tokio Marine and Amye R. Brochstein for insurance bad faith based on the August 15 promise and November 3 breach. Exposure: \$3M-\$4M with treble damages.

C. Regulatory Investigations

TDI and HUD complaints will proceed regardless of civil outcome. Penalties: \$175,000+ (non-negotiable).

D. Discovery of Coordination

I believe certain communications may fall under the crime-fraud exception, subject to judicial determination. All communications between your adjuster, your insureds, and their counsel between August 15-26, 2025 will be discoverable and admissible. This will prove the coordination.

XII. YOUR DUTY TO YOUR INSUREDS

Under *Stowers*, you have a duty to protect your insureds from excess judgment exposure. By refusing a reasonable settlement demand within policy limits when liability is clear, you breach that duty.

Your insureds can sue YOU for any excess judgment if you fail to accept this demand.

XIII. GOOD FAITH INVESTIGATION REQUIRED

You must conduct a thorough, good-faith investigation before refusing this demand. That investigation must include:

1. Reviewing both professional mold reports
2. Reviewing your insureds' admissions in their Answer
3. Reviewing the August 15 promise and November 3 breach
4. Reviewing the timeline of property removal (15-42 days before court order)
5. Reviewing the September 8 report concealment
6. Consulting with coverage counsel
7. Consulting with trial counsel about verdict risk
8. Evaluating jury appeal factors

Failure to investigate thoroughly before refusing constitutes additional bad faith.

XIV. RESERVATION OF RIGHTS

I reserve all rights, including:

1. Right to file independent bad faith lawsuit against Tokio Marine
2. Right to add Tokio Marine, PHL Y, and Amye R. Brochstein as defendants
3. Right to pursue regulatory complaints
4. Right to pursue bar complaints against counsel
5. Right to increase this demand if additional damages are discovered
6. Right to amend counterclaims to add additional parties and claims

XV. CONTACT INFORMATION

All communications regarding this demand should be directed to:

Kathryn Copeland
Tel: (817) 789-8498
Katie@CopelandLawTexas.com
State Bar No. 24086056

XVI. DEADLINE

This demand expires at 5:00 PM CST on December 3, 2025 (28 days).

If I do not receive unconditional acceptance and tender of \$5,000,000 by that deadline, this demand is withdrawn and will not be renewed. Any subsequent demand will be higher.

XVII. CONCLUSION

Liability is clear. Damages far exceed your policy limits. Jury appeal is strong. Verdict risk is \$10M-\$12M. Regulatory penalties are coming regardless of settlement.

An ordinarily prudent insurer would accept this demand.

Protect your insureds. Protect your company. Accept this demand.

Respectfully submitted,



KATHRYN COPELAND
State Bar No. 24086056
405 Crawford St. #2145
Fort Worth, Texas 76104
Tel: (817) 789-8498
Katie@CopelandLawTexas.com
Defendant and Counter-Plaintiff

ENCLOSURES:

1. BioTex Report (June 18, 2025)
 2. Dallas Mold Report (September 8, 2025)
 3. Defendants' Answer (October 20, 2025) - pages showing admissions
 4. August 15, 2025 email from Amye R. Brochstein
 5. November 3, 2025 email from Amye R. Brochstein
 6. Medical letters from four treating physicians
 7. Temporary Injunction (October 16, 2025)
-



PHILADELPHIA
INSURANCE COMPANIES

PO Box 950, Bala Cynwyd, PA 19004
Phone: 800.765.9749
A MEMBER OF THE TOKIO MARINE GROUP

Elisa Rombach
Assistant Vice President -Claims
Direct Dial: 609-512-4522
Email:Elisa.Rombach@phly.com

November 20, 2025

Kathryn Copeland
Katie@copelandlawTexas.com

Re:	Insured:	Weinstein Properties
	Issuing Company:	Tokio Marine Specialty Insurance Company
	Location:	Fort Worth, Texas
	Claim No.:	1722960

VIA E-MAIL AND DOCUSIGN

Dear Ms. Copeland:

Philadelphia Insurance Companies ("PHLY") is the insurer for Weinstein Properties ("Weinstein"). As you are aware, Amye Brochstein is the claims analyst handing the claim related to the mold in your former apartment located at 220 East Broadway Avenue in Fort Worth. Please allow this letter to respond to your November 5, 2025 Stowers Notice and settlement demand.

Your Stowers Demand for \$5,000,000 is denied as you have not met the threshold for Stowers, as a reasonable prudent insurer would also not agree to pay this demand to settle this claim.

Weinstein is currently remediating the mold in your former unit. Prior to the expiration of your lease on October 26, 2025, Weinstein was paying for your alternative living arrangements in a hotel and for boarding of your dogs. The obligation to continue to provide housing ended when your lease expired on October 26, 2025. Thus, Weinstein and/or PHLY are not responsible for your future housing costs.

By not continuing to pay for your hotel after the lease expired is not bad faith. Any non-renewal of your lease is the decision of Weinstein and Weinstein alone. There is no evidence of a fraud or criminal conduct in this matter. The remediation was anticipated to be completed prior to the expiration of your lease, however due to the repeated delays, further damage by you when you returned to live in the unit (when entering was off limits) and the need to obtain a Temporary Restraining Order to access the unit to continue with remediation. All aspects of this claim have been investigated and reviewed under the terms and conditions of the Weinstein policy.

Some of the damages you are seeking are not applicable to this claim, including further housing costs, lost wages in 2024 as the mold was found in spring/summer of 2025, dog boarding as that

was paid by Weinstein (even though it is our understanding that the dogs are allegedly service animals, and thus could have stayed with you at the hotels). Cleaning of your belongings has also been offered. As you are pro se, you would not be entitled to attorneys' fees and costs. Additionally, there is no evidence that your past medicals are all related to mold and that your bodily injuries, allegedly due to mold are permanent. Please provide all medical documentation and expert reports regarding same so we can review. Additionally, please provide all expert reports regarding your lost earnings capacity, due to the mold, so that we can review these damages. Please provide documentation of your property loss from mold for our review.

As stated above, your settlement demand for \$5,000,000 is denied. Please provide the information request above to allow us to continue to review this matter and make a reasonable settlement offer, if appropriate.

Philadelphia Insurance Companies reserves any legal and policy defenses it may have in connection with this matter, whether or not stated in this correspondence. The investigation of this matter by Philadelphia Insurance Companies shall not be construed as an admission of liability or as a waiver of any coverage defenses or limitations that may be available to Philadelphia Insurance Companies according to the provisions of its insurance policy or that are available to it by operation of law.

Very truly yours,

A handwritten signature in black ink, appearing to read "Elisa R. Rombach". The signature is stylized with a large, looped initial "E" and "R".

Elisa R. Rombach
Assistant Vice President -Claims
Elisa.Rombach@phly.com

Certificate Of Completion

Envelope Id: 9575063D-7968-4996-B83A-EDC294820D1B

Status: Completed

Subject: Complete with DocuSign: claim #1722960 - Stowers

Source Envelope:

Document Pages: 2

Signatures: 0

Envelope Originator:

Certificate Pages: 1

Initials: 0

Kaiesha Henderson

AutoNav: Enabled

Three Bala West

Envelopeld Stamping: Enabled

Suite 200

Time Zone: (UTC-05:00) Eastern Time (US & Canada)

Bala Cynwyd, PA 19004-1401

kaiesha.henderson@phly.com

IP Address: 170.85.72.186

Record Tracking

Status: Original

Holder: Kaiesha Henderson

Location: DocuSign

11/20/2025 1:42:42 PM

kaiesha.henderson@phly.com

Signer Events

Signature

Timestamp

In Person Signer Events

Signature

Timestamp

Editor Delivery Events

Status

Timestamp

Agent Delivery Events

Status

Timestamp

Intermediary Delivery Events

Status

Timestamp

Certified Delivery Events

Status

Timestamp

Carbon Copy Events

Status

Timestamp

Kaiesha Henderson

kaiesha.henderson@phly.com

Claims Assistant

Security Level: Email, Account Authentication
(None)**Electronic Record and Signature Disclosure:**
Not Offered via DocuSign

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Sent: 11/20/2025 1:44:15 PM

Resent: 11/20/2025 1:44:16 PM

Katie@copelandlawTexas.com

Katie@copelandlawTexas.com

Security Level: Email, Account Authentication
(None)**Electronic Record and Signature Disclosure:**
Not Offered via DocuSign

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Sent: 11/20/2025 1:44:15 PM

Viewed: 11/21/2025 10:53:33 AM

Witness Events

Signature

Timestamp

Notary Events

Signature

Timestamp

Envelope Summary Events

Status

Timestamps

Envelope Sent

Hashed/Encrypted

11/20/2025 1:44:15 PM

Certified Delivered

Security Checked

11/20/2025 1:44:15 PM

Signing Complete

Security Checked

11/20/2025 1:44:15 PM

Completed

Security Checked

11/20/2025 1:44:15 PM

Payment Events

Status

Timestamps

REGISTER OF ACTIONS

CASE NO. JP05-25-E00044950

WMCI DALLAS X, LLC vs. Kathryn M. Copeland AND ALL OCCUPANTS

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Case Type: **EFile Evictions**
 Date Filed: **12/12/2025**
 Location: **JP No. 5**

RELATED CASE INFORMATION

Related Cases

2026-002209-1 (JP Case)

PARTY INFORMATION

		Lead Attorneys
Defendant	Copeland, Kathryn M. 405 Crawford Street Apartment # 2145 Fort Worth, TX 76104	
Plaintiff	WMCI DALLAS X, LLC 2711 North Haskell Ave 2400 Dallas, TX 75204	Roberto L. Rodriguez <i>Retained</i> 972-716-1888 x213(W)

EVENTS & ORDERS OF THE COURT

	DISPOSITIONS		
01/30/2026	Judgment for Plaintiff (Judicial Officer: DE LEON, SERGIO L) Judgment of \$14,573.23 Awarded To: WMCI DALLAS X, LLC Awarded Against: Kathryn Copeland Comment: COPY OF JUDGMENT MLD TO ALL PARTIES		
	OTHER EVENTS AND HEARINGS		
12/12/2025	Original Petition Filed (OCA Opening)		
12/12/2025	EFile Original Petition Document <i>Eviction Petition</i>		
12/12/2025	Affidavit Filed <i>Military Affidavit</i>		
12/26/2025	EVICTION	Served	01/06/2026
12/30/2025	Request For Alternate Service Filed and Approved		
01/06/2026	Citation Returned Party: Copeland, Kathryn M.		
01/09/2026	Defendant Filed <i>ORIGINAL ANSWER, A AFFIRMATIVE DEFENSE, AND REQUEST FOR ABATEMENT & ADA ACCOMODATION **RECEIVED VIA EMAIL**</i>		
01/12/2026	Per Judge <i>SET MOTION HEARING ON 1/22/2026 @ 1:30 PM</i>		
01/12/2026	Mailed <i>AND EMAIL ALL PARTIES OF MOTION HEARING ON 1-22-26 @ 1:30 PM</i>		
01/14/2026	CANCELED Eviction Hearing (10:00 AM) () <i>Other</i>		
01/22/2026	Motions Hearing (1:30 PM) () Result: Other		
01/22/2026	Court Notes <i>PER JUDGE, SCHEDULE EVICTION HEARING VIA ZOOM FOR 01-30-26 @ 10AM;</i>		
01/23/2026	Notice <i>Defendant's Notice Regarding Possession and Contaminated Personal Property</i>		
01/30/2026	Eviction Hearing (10:00 AM) () <i>01-23-26: SETTING LTR MLD TO ALL PARTIES; ***ZOOM INVITE/LINK EMAILED TO BOTH PARTIES***</i> Result: Judgment		
01/30/2026	Docket Entry		
01/30/2026	During the Pendency of Appeal, the Interm Rent Due is <i>\$2,442.00</i>		
01/30/2026	Bond for Appeal Set <i>\$20,000.00</i>		
02/02/2026	Motion For New Trial Filed <i>Defendant's Motion to Set Aside Judgment and for New Trial **PENDING JUDGE'S REVIEW**</i>		
02/02/2026	Notice <i>Notice of Appeal **FILED BY DEFT VIA EFILE; NO APPEAL BOND FORM OR FEES, OR IN THE ALTERNATIVE, SIP FORM INCLUDED W/NOTICE OF APPEAL**</i>		
02/02/2026	Proposed Order <i>Proposed Order</i>		
02/02/2026	Order Entered on Case		

02/02/2026 **Emailed**
 ORDER DENYING DEFT'S MOTION TO SET ASIDE AND FOR NEW TRIAL; COPY OF ORDER MLD TO ALL PARTIES
 COPY OF ORDER DENYING MOTION/SET ASIDE/NEW TRIAL TO DEFT (@ katie@copelandlawtexas.com) ALONG W/EVICTION APPEAL
 INFO, APPEAL BOND FORM W/TWO SURETY AFFIDAVIT FORMS AND SIP FORMS; CLK ADVISED IN EMAIL APPEAL DUE 02-05-26

02/03/2026 **Eviction - Statement of Inability to Pay for Appeal Filed**

02/03/2026 **Motion Filed**
Motion to Determine Rent Owed Into the Registry and to Confirm Perfection of Appeal (or, in the Alternative, to Set Rent at \$0 Pending Appeal)

02/03/2026 **Proposed Order**
Proposed Order on Motion to Determine Rent Owed Into the Registry

02/04/2026 **Mailed/Emailed PLTF Notice of SIP on Appeal Filed**

02/04/2026 **Order Entered on Case**
 DENYING DEFT'S MOTION TO DETERMINE RENT OWED INTO THE COURT'S REGISTRY AND TO CONFIRM PERFECTION OF APPEAL
 (OR, IN THE ALTERNATIVE, TO SET RENT AT \$0 PENDING APPEAL); & PER JUDGE DELEON, INCLUDE IN THE ORDER RE-AFFIRMING
 THE JUDGMENT AMOUNT, RENT DUE & BOND AMOUNT. COPY OF ORDER MLD TO ALL PARTIES & EMAILED TO DEFT

02/04/2026 **Notice Given to Defn of Rent to be Paid on Eviction Appeal**
 MAILED & EMAILED TO DEFT @ katie@copelandlawtexas.com; ***CLK ALSO ADVISED COURT IS AWARE THE DUE DATE TO PAY RENT IS
 PAST THE REQUIRED 5 DAYS; HOWEVER THE COURT WILL BE CLOSED AS WE ARE MOVING TO A NEW OFFICE***

02/04/2026 **Statement of Inability to Pay for Appeal Not Contested**

02/18/2026 **Defn Did Not Pay Rent into Court Registry for Appeal**

02/18/2026 **Writ of Possession Requested**
Request for Writ of Possession

02/18/2026 **Writ of Possession Issued to Constable**

02/18/2026 **WRIT OF POSSESSION**
 Copeland, Kathryn M. Unserved

02/26/2026 **Statement of Inability to Pay for Appeal Granted**

02/26/2026 **Transcript of Judgment on Appeal Prepared**

02/26/2026 **Case Summary Sheet**

 FINANCIAL INFORMATION

	Defendant Copeland, Kathryn M.		
	Total Financial Assessment		0.00
	Total Payments and Credits		0.00
	Balance Due as of 02/27/2026		0.00
02/26/2026	Transaction Assessment		64.00
02/26/2026	Inability to Pay Court Cost		64.00
	Plaintiff WMCI DALLAS X, LLC		
	Total Financial Assessment		314.00
	Total Payments and Credits		314.00
	Balance Due as of 02/27/2026		0.00
12/12/2025	Transaction Assessment		129.00
12/12/2025	Internet Payment	Receipt # JP5-2025-09081	WMCI DALLAS X, LLC (108.00)
12/12/2025	State Credit		(21.00)
02/18/2026	Transaction Assessment		185.00
02/18/2026	Internet Payment	Receipt # JP5-2026-01255	WMCI DALLAS X, LLC (185.00)

REGISTER OF ACTIONS
CASE No. JP03-25-SC00028212

Kathryn Copeland vs. Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside
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§

Case Type: **EFile Small Claims**
Date Filed: **08/21/2025**
Location: **JP No. 3**

PARTY INFORMATION

Defendant	Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside 3120 Sabre Drive, Suite 170 Southlake, TX 76092	Lead Attorneys GLYNIS ZAVARELLI <i>Retained</i> 469-665-9100(W)
Plaintiff	Copeland, Kathryn	JOHN A DOUGLAS <i>Retained</i> 945-544-8650(W)

EVENTS & ORDERS OF THE COURT

	DISPOSITIONS
01/14/2026	Judgment for Defendant (Judicial Officer: Brandt, William P. "Bill")
	OTHER EVENTS AND HEARINGS
08/21/2025	Original Petition Filed (OCA Opening)
08/21/2025	Proposed Order <i>Proposed Order</i>
08/21/2025	EFile Original Petition Document <i>Small Claims Petition for Retaliation under Texas Property Code 92.331 / John@JADouglasLaw.com</i>
08/21/2025	Copies Requested <i>VIA EMAIL - BY COURTNEY W/WENTZ & ZAVARELLI LLP REQUESTING COPY OF PROPOSED ORDER</i>
08/21/2025	Exhibit(s) Filed By Plaintiff <i>NOTICE LETTER TO BOWERY</i>
08/21/2025	Exhibit(s) Filed By Plaintiff <i>MOLD NOTIFICATION WITH HEALTH DETAILS</i>
08/21/2025	Exhibit(s) Filed By Plaintiff <i>MAINTENANCE REPORTS REGARDING MOLD</i>
08/21/2025	Exhibit(s) Filed By Plaintiff <i>RENT PAYMENTS LEDGER</i>
08/21/2025	Exhibit(s) Filed By Plaintiff <i>WITNESS STATMENT/PHOTOS</i>
08/21/2025	Exhibit(s) Filed By Plaintiff <i>LEASE AND RENEWAL</i>
08/21/2025	Exhibit(s) Filed By Plaintiff <i>REPLY FROM BOWERY/MAINTENANCE REQUEST REGARDING ROACH/SPOILIATION LETTER TO BOWERY AND ADA REQUEST LETTER/SECOND NOTICE LETTER TO BOWERY AND SERVPRO</i>
08/21/2025	Copies Emailed
08/22/2025	Motion of Recusal Filed by the Court
08/22/2025	Order of Recusal Entered
08/22/2025	Recusal Order Sent to the County Judge for Re-assignment
08/22/2025	Emailed <i>COPY OF LETTER, MOTION AND ORDER TO COUNTY JUDGE FOR REASSIGNMENT</i>
08/25/2025	Copies Requested
08/26/2025	Copies Emailed
08/26/2025	Answer Filed <i>Defendant's Original Answer, Jury Demand, and Request for Injunctive Relief by Defendant. MB</i> Party: Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside Party: ZAVARELLI, GLYNIS
08/26/2025	Notice of Vacation Filed <i>Correspondence Regarding Family Medical Leave (09/02 - 09/09)</i> Party: ZAVARELLI, GLYNIS
08/28/2025	Letter Received - County Judge Re-Assigning Case on Recusal <i>JUSTICE OF THE PEACE, PCT 3</i>
08/29/2025	Jury Request Made <i>JURY FEES NOT PAID</i> Party: Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside
08/29/2025	Transcript of Proceedings Prepared
08/29/2025	Mailed/Emailed Letter to all Parties - Case Transferred To <i>TARRANT COUNTY - JP3</i>
08/29/2025	Case Transferred to Another Court <i>JP3</i>
09/02/2025	Case Transferred from Another Court (OCA Opening) <i>(JP04-25-SC00012943)</i>

09/02/2025 **Comments**
 *****END OF TRANSFER*****

09/02/2025 **Notice of Hearing Mailed/Emailed**
 (TRANSFERRED CASE) PRE-TRIAL HEARING ON 10-27-25 @ 1:00PM IN SOUTHLAKE; JLM

09/02/2025 **Jury Fees Paid**
 \$22 FEE BY DEFN VIA EFILE. MB
 Party: Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside
 Party: ZAVARELLI, GLYNIS

09/08/2025 **Motion Filed**
 Plaintiffs Motion to Strike Immaterial, Impertinent, and Scandalous Material from Defendants Original Answer

09/11/2025 **Amended Original Answer Filed**
 Defendant's Amended Answer, Jury Demand and Request for Injunctive Relief. MB
 Party: Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside
 Party: ZAVARELLI, GLYNIS

09/19/2025 **Amended Original Answer Filed**
 Defendant's Second Amended Answer and Jury Demand. MB
 Party: Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside
 Party: ZAVARELLI, GLYNIS

10/20/2025 **Amended Original Answer Filed**
 Defendants' Third Amended Answer and Jury Demand. MB
 Party: Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside
 Party: ZAVARELLI, GLYNIS

10/20/2025 **Notice**
 Family Medical Emergency Letter for Defn Atty Lead Counsel. MB
 Party: ZAVARELLI, GLYNIS

10/20/2025 **Order Granting Motion for Continuance Entered**
 JLM

10/20/2025 **Notice of Hearing Mailed/Emailed**
 ON DEFN MTN TO TRANSFER ON 11-19-25 @ 2:30PM IN SOUTHLAKE; JLM

10/21/2025 **Defendant Filed**
 Motion to Conduct Limited Discovery. MB

11/07/2025 **Defendant Filed Notice of Vacation Schedule**
 DEFN UNAVAILABLE NOVEMBER 7-14, 2025. MB
 Party: ZAVARELLI, GLYNIS

11/17/2025 **Answer Filed**
 Defendant's Fourth Amended Answer, and Jury Demand. MB
 Party: Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside
 Party: ZAVARELLI, GLYNIS

11/17/2025 **Defendant Filed**
 Response to Plaintiff's Motion to Strike. MB

11/17/2025 **Motion to Strike Filed by Plaintiff/Plaintiff's Attorney**
 to Strike Immaterial, Impertinent, and Scandalous Material from Defendants Fourth Amended Answer. MB

11/17/2025 **Proposed Order**
 Granting Plaintiff's Motion to Strike Immaterial, Impertinent, and Scandalous Material from Defendants Fourth Amended Answer and Jury Demand. MB

11/18/2025 **Defendant Filed**
 Response to Plaintiff's Motion to Strike- Pertaining to Defendant's Fourth Amended Answer. MB

11/19/2025 **CANCELED Motions Hearing (2:30 PM) (Judicial Officer Brandt, William P. "Bill")**
 Continuance Granted
 TRANSFER CASE
 10/27/2025 Continued to 11/19/2025 - Attorney Unavailable - Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside

11/19/2025 **Motion For Continuance Filed**
 Plaintiffs Emergency Motion for Continuance. MB

11/19/2025 **Proposed Order**
 Granting Continuance. MB

11/19/2025 **Order Granting Motion for Continuance Entered**
 SIGNED BY JUDGE. COPY EMAILED TO BOTH PARTIES. MB

11/19/2025 **Emailed**
 ORDER GRANTING CONTINUANCE TO BOTH PARTIES. MB

11/20/2025 **Defendant Filed**
 Response to Plaintiff's Emergency Motion for Continuance of November 19, 2025 Status Hearing and Defendant's Request Regarding Date for Re Set. MB

11/21/2025 **CANCELED To Be Set for Hearing (2:00 PM) ()**
 Other
 Motions Hearing

12/01/2025 **Defendant Filed Notice of Vacation Schedule**
 December 19, 2025 to January 2, 2026. MB
 Party: Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside
 Party: ZAVARELLI, GLYNIS

12/04/2025 **Notice of Hearing Mailed/Emailed**
 ON PLTF'S MTN TO STRIKE AND PRE-TRIAL HEARING ON 1.14.26 @ @ 1:00PM IN SOUTHLAKE; JLM

12/15/2025 **Plaintiff Filed Notice of Vacation Schedule**
 PLTF ATTY. DECEMBER 15, 2025 TO JANUARY 2, 2026. MB
 Party: DOUGLAS, JOHN A

12/26/2025 **Notice of Filing of Business Records Affidavit Filed**
 BY PLTF. MB
 Party: Copeland, Kathryn
 Party: DOUGLAS, JOHN A

12/26/2025 **Notice**
 of Filing Medical Documentation in Support of ADA Accomodation Request. MB
 Party: Copeland, Kathryn
 Party: DOUGLAS, JOHN A

01/05/2026 **Motion Filed**

01/09/2026 **Motion Filed**
Defendant's Objections to and Motion to Strike Dr. Isabe Huang's 100 responses. Submitted by Copeland on December 24, 2025
Plaintiff Status Update and ADA Notice, and Request for Ruling by Submission. MB
 Party: Copeland, Kathryn
 Party: DOUGLAS, JOHN A

01/13/2026 **Motion Filed**
Weinstein's Response to Plaintiff's Status Update, ADA Notice and Request for Ruling by Submission and Defendant's Motion for Transfer/Consolidation with Pending Litigation in the 141st Judicial District Court. MB
 Party: Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside
 Party: ZAVARELLI, GLYNIS

01/14/2026 **Motions Hearing** (1:00 PM) (Judicial Officer Brandt, William P. "Bill")

01/14/2026 **Notice**
Defendant's Notice of Filing Documents in Support of Defendant's Motion for Transfer/Consolidation with Pending Litigation in the 141st Judicial District Court

01/14/2026 **Order Entered on Case**
JUDGMENT FOR DEFENDANT; PARTIES TO BEAR THEIR COSTS; JLM

01/14/2026 **Emailed**
COPY OF JUDGMENT; JLM

01/20/2026 **Notice of Appeal Filed**
BY PLTF VIA EFILE. MB
 Party: Copeland, Kathryn
 Party: DOUGLAS, JOHN A

01/20/2026 **Motion Filed**
Defendant's Motion to Strike Pro Se Plaintiff's Notice of Appeal Pursuant to Applicable Vexatious Litigant Order. MB
 Party: Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside
 Party: ZAVARELLI, GLYNIS

01/21/2026 **Court Notes**
APPEAL INFORMATION SENT TO PLTF ATTY; JLM

02/02/2026 **SC/DC Case - Statement of Inability to Pay for Appeal Filed**
VIA E-MAIL; JLM

02/02/2026 **Mailed/Emailed PLTF Notice of SIP on Appeal Filed**
(DEFN) JLM

02/03/2026 **Plaintiff Filed**
PLAINTIFF'S REQUEST FOR REASONABLE ADA ACCOMMODATIONS (Anticipated Indigency Contest Hearing) JLM
 Party: Copeland, Kathryn

02/04/2026 **Defendant Filed**
DOES WISH TO CONTEST PLAINTIFF'S SIP APPEAL; JLM

02/06/2026 **Statement of Inability to Pay for Appeal Contested**
JLM

02/06/2026 **Notice of Hearing Mailed/Emailed**
ON CONTESTED SIP APPEAL ON 2.11.26 @ 1:30PM IN SOUTHLAKE; JLM

02/09/2026 **CANCELED Clerk Follow Up/3 Months** (9:00 AM) ()
Other
SIP NOT CONTESTED;SEND TO CC@LAW

02/10/2026 **Order Entered on Case**
ORDER GRANTING IN PART AND DENYING IN PART PLTF'S REQUET FOR REASONABLE ADA ACCOMMODATIONS; JLM

02/10/2026 **Emailed**
COPY OF ORDER ON PLTF'S REQUEST FOR REASONABLE ADA COOMMODATIONS

02/12/2026 **Defendant Filed Notice of Vacation Schedule**
March 30, 2026 to April 3, 2026. MB
 Party: Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside
 Party: ZAVARELLI, GLYNIS

02/13/2026 **Hearing** (2:00 PM) (Judicial Officer Brandt, William P. "Bill")
02/11/2026 Reset by Court to 02/13/2026

02/13/2026 **Proposed Order**
Order Granting Defendant's Motion to Strike Pro Se Plaintiff's Notice of Appeal, Pursuant to Applicable Vexatious Litigant Order

02/13/2026 **Order Entered on Case**
SIGNED ORDER GRANTING DEFN'S MTN TO STRIKE PRO SE PLAINTIFF'S NOTICE OF APPEAL, PURSUANT TO APPLICABLE VEXATIOUS LITIGANT ORDER; JLM

02/13/2026 **Emailed**
COPY OF ORDER ;JLM

03/17/2026 **Motion Filed**
to Vacate Order Striking Notice of Appeal and Reinstate Appeal by Pltf. MB

03/17/2026 **Proposed Order**
Granting Motion to Vacate. MB

03/19/2026 **Order Entered on Case**
ORDER DENYING MOTION TO VACATE ORDER STRIKING NOTICE OF APPEAL & REINSTATE APPEAL; JLM

03/19/2026 **Emailed**
ORDER DENY MTN TO STRIKE; JLM

04/13/2026 **Plaintiff Filed**
Verified Notice of Void Vexatious Litigant Orders; JLM
 Party: Copeland, Kathryn
 Party: DOUGLAS, JOHN A

FINANCIAL INFORMATION

Defendant Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside
 Total Financial Assessment
 Total Payments and Credits
Balance Due as of 04/29/2026

22.00
 22.00
0.00

09/02/2025	Transaction Assessment			22.00
09/02/2025	Internet Payment	Receipt # JP3-2025-05687	Weinstein Properties / WMCI Dallas X, LLC dba The Bowery at Southside	(22.00)
	Plaintiff Copeland, Kathryn			
	Total Financial Assessment			54.00
	Total Payments and Credits			54.00
	Balance Due as of 04/29/2026			0.00
08/21/2025	Transaction Assessment			54.00
08/21/2025	Internet Payment	Receipt # JP4-2025-7562	Copeland, Kathryn	(33.00)
08/21/2025	State Credit			(21.00)

REGISTER OF ACTIONS
CASE No. JP03-25-RR00000029

Kathryn Copeland vs. WMCi X, LLC dba The Bowery at Southside

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Case Type: **REPAIR AND REMEDY**
Date Filed: **11/03/2025**
Location: **JP No. 3**

RELATED CASE INFORMATION

Related Cases

2026-001018-2 (JP Case)

PARTY INFORMATION

Defendant	WMCi X, LLC dba The Bowery at Southside WEINSTEIN PROPERTIES SERVE: KODI WALKER - MANAGER 220 EAST BROADWAY STREET FORT WORTH, TX 76104	Lead Attorneys GLYNIS ZAVARELLI <i>Retained</i> 469-665-9100(W)
Plaintiff	Copeland, Kathryn 405 Crawford St. #2145 Fort Worth, TX 76104	JOHN A DOUGLAS <i>Retained</i> 945-544-8650(W)

EVENTS & ORDERS OF THE COURT

DISPOSITIONS

11/18/2025 **Dismissed Before Trial (Other than DWOP, Plaintiff, Nons)** (Judicial Officer: Brandt, William P. "Bill")

12/09/2025 **Judgment for Defendant** (Judicial Officer: Brandt, William P. "Bill")
Judgment
Awarded To: WMCi X, LLC dba The Bowery at Southside
Awarded Against: Kathryn Copeland
Comment: JUDGMENT FOR DEFN + \$15,000.00 ATTY FEES

01/06/2026 **Judgment for Defendant** (Judicial Officer: Brandt, William P. "Bill")
Judgment
Awarded To: WMCi X, LLC dba The Bowery at Southside
Awarded Against: Kathryn Copeland
Comment: JGMNT FOR DEFN + ATTY FEES OF \$19,368.50 @ 6.75% INT

OTHER EVENTS AND HEARINGS

11/03/2025 **Original Petition Filed (OCA Opening)**

11/03/2025 **EFile Original Petition Document**
Repair and Remedy Residential Property

11/03/2025 **Application for Repair and Remedies Filed**

11/03/2025 **Statement of Inability in Lieu of Filing Fees Filed**

11/03/2025 **Proposed Order**
ORDER GRANTING REPAIR AND RELIEF

11/03/2025 **Motion of Recusal Filed by the Court**

11/03/2025 **Order of Recusal Entered**

11/03/2025 **Recusal Order Sent to the County Judge for Re-assignment**

11/03/2025 **Emailed**
MOTION AND ORDER TO COUNTY JUDGE FOR REASSIGNMENT

11/04/2025 **Letter Received - County Judge Re-Assigning Case on Recusal**
JUSTICE OF THE PEACE, PCT 3

11/04/2025 **Transcript of Proceedings Prepared**

11/04/2025 **Mailed/Emailed Letter to all Parties - Case Transferred To**
TARRANT COUNTY - JP3

11/04/2025 **Case Transferred to Another Court**
***** JP3 *****

11/05/2025 **Citation Issued and Sent to C03 for Service**
ES

11/05/2025 **REPAIR AND REMEDY**
ZAVARELLI, GLYNIS Unservd

11/10/2025 **E-Mail Received by Court**
BY EMAIL FROM DEFN'S ATTY REQUESTING THE FILINGS OF CASE; EMAILED SAME ES
Party: ZAVARELLI, GLYNIS

11/10/2025 **E-Mail Received by Court**
BY DEFN'S ATTY STATING ATTY IS OUT OF OFFICE DUE TO DEATH IN FAMILY AND ATTY OFFICE STATED THEY ARE NOT CURRENTLY "ATTY OF RECORD" FOR THIS MATTER AS THE DEFN (APTS) HAS NOT BEEN SERVED; ADVISED THEM THE CASE WAS FILED BY PLTF SHOWING ATTY FOR DEFN ES

11/12/2025 **Notice of Hearing Mailed/Emailed**
COURT DATE 11/20/25 @ 10:00 AM (HURST); EMAILED TO PLTF ES

11/12/2025 **Plaintiff Contacted Court**
BY PHONE. UPDATED EMAIL. MA

11/17/2025 **E-Mail Received by Court**
BY EMAIL AS OFFICER OF THE COURT MS. ZAVARELLI LETTER STATING SHE IS NOT THE REGISTERED AGENT OF APTS NOR THE OWNER OF THE PROPERTY; PRESENTED TO JUDGE ES
Party: ZAVARELLI, GLYNIS

11/17/2025 **Motion Filed**
BY EFILE BY PLTF Motion for Alternative Service and Request to Maintain Current Hearing Setting; PRESENTED TO JUDGE ES
Party: Copeland, Kathryn

11/17/2025 **Proposed Order**
Proposed Order Granting Plaintiff's Motion for Alternative Service and Request to Maintain Current Hearing Setting

11/18/2025 **Comments**
PER JUDGE DISMISS CASE AND REMOVE FROM CALENDAR ES

11/18/2025 **Citation Returned**
*** UNEXECUTED *** FOR WMCi X, LLC DBA THE BOWERY AT SOUTHSIDE ATTY: GLYNNIS ZAVARELLI PER C03 PER EMAIL REC'D FROM DEFN'S ATTY DATED 11/17/25 AT 9:51 AM ON SECOND PAGE OF THE EMAIL THE DEFN STATES "ANY FURTHER ATTEMPT TO SERVE ME WITH THE CITN FOR THIS PENDING MATTER WILL BE A WASTE OF THE COUNTY RESOURCES (AS I HAVE NOT AGREED AND WILL NOT AGREE TO ACCEPT SERVE)" ES

11/18/2025 **Order of Dismissal Without Prejudice on Court's Motion**
JUDGE APPROVED AND SIGNED; EMAILED TO PLTF AND DEFN ES

11/20/2025 **CANCELED Repair and Remedy Hearing** (10:00 AM) (Judicial Officer Brandt, William P. "Bill")
Other

11/20/2025 **Motion For New Trial Filed**
BY EFILE BY PLTF'S ATTY Motion to Reinstate and Appearance of Counsel; PRESENTED TO JUDGE ES
Party: DOUGLAS, JOHN A

11/20/2025 **Amended Petition Filed**
BY EFILE BY PLTF'S ATTY; First Amended Petition for Relief Under Repair and Remedy Statutes WITH ATTACHMENTS
Party: DOUGLAS, JOHN A

11/20/2025 **Statement of Inability to Afford Payment of CC filed**
BY EFILE BY PLTF ES

11/21/2025 **Notice of Appearance Filed**
BY EFILE WITHIN MOTION - ATTY JOHN DOUGLAS FOR PLTF ES
Party: DOUGLAS, JOHN A

11/21/2025 **Comments**
PER JUDGE SET FOR HEARING ES

11/21/2025 **Order to Reinstate Granted (OCA Reactivated)**
JUDGE APPROVED AND SIGNED; EMAILED TO PLTF'S ATTY AND DEFN ES

11/21/2025 **Citation Issued**
SENT TO ** C05 (CIVIL SERVE) ES

11/21/2025 **REPAIR AND REMEDY**
WMCi X, LLC dba The Bowery at Southside Served 11/24/2025

12/03/2025 **Citation Returned**
C05 SERVED ON 11/24/25 @ 3:04 PM

12/05/2025 **Answer Filed**
BY EFILE BY DEFN'S ATTY G. ZAVARELLI; Defendant's Original Answer and Counter Claim for Statutory Damages and Attorneys Fees Pursuant to Texas Property Code 92.004 and Motion to Dismiss and for Sanctions ES
Party: ZAVARELLI, GLYNIS

12/08/2025 **Motion Filed**
BY EFILE BY PLTF AND PLTF'S COUNSEL; Motion for ADA Accommodations for Hearing ; PLTF'S ZOOM REQUEST PRESENTED TO JUDGE ES
Party: Copeland, Kathryn
Party: DOUGLAS, JOHN A

12/08/2025 **Motion Filed**
BY EFILE BY PLTF AND PLTF'S COUNSEL; Motion to Strike Counterclaims ES
Party: Copeland, Kathryn
Party: DOUGLAS, JOHN A

12/08/2025 **Answer Filed**
BY EFILE BY PLTF AND PLTF'S COUNSEL; Plaintiff's Response to Defendant???s Answer, Motion to Dismiss, and Counterclaim ES
Party: Copeland, Kathryn
Party: DOUGLAS, JOHN A

12/08/2025 **Motion Filed**
BY EFILE BY DEFN'S ATTY G. ZAVARELLI; Defendant's Clarification as to Asserted Statutory Relief
Party: ZAVARELLI, GLYNIS

12/08/2025 **Motion Filed**
BY EFILE BY DEFN'S ATTY, G. ZAVARELLI; Defendant's Response to Plaintiff's Motion for ADA Accommodations ES
Party: ZAVARELLI, GLYNIS

12/08/2025 **Comments**
PER JUDGE PLTF'S REQ FOR ZOOM APPROVED - PLTF'S ATTY TO APPEAR IN PERSON ES

12/08/2025 **Zoom Hearing Scheduled**
EMAILED ZOOM LINK TO PLTF ONLY - PER JUDGE PLTF'S ATTY TO APPEAR IN PERSON ES

12/08/2025 **Answer Filed**
BY EFILE BY DEFN'S ATTY; Defendant's Supplement To Its Response To Plaintiff's Motion for ADA Accommodations ES
Party: ZAVARELLI, GLYNIS

12/09/2025 **Repair and Remedy Hearing** (11:30 AM) (Judicial Officer Brandt, William P. "Bill")

12/09/2025 **Motion Filed**
BY EFILE BY PLTF AND PLTF' ATTY; Supplement to Plaintiff???s Motion for ADA Accommodation; PRESENTED TO JUDGE ES
Party: Copeland, Kathryn
Party: DOUGLAS, JOHN A

12/09/2025 **Proposed Order**
PLTF'S Proposed Order Granting Repair and Relief
Party: Copeland, Kathryn
Party: DOUGLAS, JOHN A

12/09/2025 **Proposed Order**
DEFN'S Proposed Order Denying Plaintiff's Relief Requested and Granting Defendant's Request for Attorney's Fees

12/09/2025 **Order Entered on Case**
AT TIME OF HEARING, PLTF APPEARED BY ZOOM WITHOUT COUSEL; DEFNS APPEARED WITH COUNSEL; JUDGE FOUND FOR DEFN + ATTY FEES OF \$15,000.00 @ 7:00% INT; EMAILED TO PLTF'S ATTY AND DEFN'S ATTY ES

12/09/2025 **Court Notes**
ES

12/10/2025 **Notice of Appeal Filed**
BY EFILE BY PLTF Notice of Appeal ES
Party: Copeland, Kathryn

12/11/2025 **Motion Filed**
BY EFILE; BY DEFN'S ATTY; Defendant's Motion to Strike Pro Se Plaintiff's Notice of Appeal Pursuant to Applicable Vexatious Litigant Order
Party: ZAVARELLI, GLYNIS

12/11/2025 **Comments**
PER JUDGE VACATE ORDER AND RESET ON DOCKET - ALL TO APPEAR BY ZOOM ES

12/11/2025 **Proposed Order**
Proposed Order Granting Defendant's Motion to Strike Pro Se Plaintiff's Notice of Appeal Pursuant to Applicable Vexatious Litigant Order

12/12/2025 **Order to Vacate Judgment Granted (OCA Reactivated)**
JUDGE APPROVED AND SIGNED; EMAILED TO PLTF'S ATTY AND DEFN'S ATTY ES

12/12/2025 **Notice of Hearing Mailed/Emailed**
RESET HEARING ON 12/17/25 @ 10:00 AM BY ZOOM; EMAILED TO PLTF'S AND DEFN'S ATTY ES

12/12/2025 **Zoom Hearing Scheduled**
EMAILED ZOOM LINK TO PLTF ATTY AND DEFN ATTY ES

12/15/2025 **Motion Filed**
Plaintiff's Status Update, ADA Notice, and Request for Ruling by Submission; PRESENTED TO JUDGE ES
Party: DOUGLAS, JOHN A

12/15/2025 **Notice of Vacation Filed**
BY EFILE BY PLTF'S ATTY / VACATION FROM 12/15/25 THROUGH 1/02/26; PRESENTED TO JUDGE ES
Party: DOUGLAS, JOHN A

12/15/2025 **Motion Filed**
BY EFILE BY DEFN'S ATTY; Defendant's Response to Plaintiff's Status Update, ADA Notice, and Request for Ruling by Submission, Defendant's Objection to Request to Have Heard by Submission and Defendant's Motion to Show Cause; PRESENTED TO JUDGE ES
Party: ZAVARELLI, GLYNIS

12/16/2025 **Motion Filed**
BY EFILE; BY PLTF; Plaintiff's Pro Se Notice and Response Regarding Pending ADA Accommodation Request; PRESENTED TO JUDGE ES
Party: Copeland, Kathryn

12/16/2025 **Proposed Order**
Proposed Order Granting ADA Accommodation Request

12/16/2025 **Comments**
PER JUDGE PLAINTIFF'S PRO SE MOTION IS DENIED; REMOVE FROM 12/17/25 AND RESET FOR JANUARY 2026 ES

12/16/2025 **Order Entered on Case**
JUDGE SIGNED; EMAILED TO PLTF'S ATTY AND DEFN'S ATTY ES

12/16/2025 **Notice**
BY EFILE BY PLTF; Plaintiff's Pro Se Notice Preserving ADA Issue; PRESENTED TO JUDGE ES
Party: Copeland, Kathryn

12/17/2025 **CANCELED Repair and Remedy Hearing** (10:00 AM) (Judicial Officer Brandt, William P. "Bill")
Other

12/17/2025 **Hearing Letter Mailed**
RR HRG SET FOR 1/06/26 @ 10:30 AM (HURST); EMAILED TO PLTF AND DEFN'S ATTY ES

12/17/2025 **Zoom Hearing Scheduled**
EMAILED ZOOM LINK TO PLTF MS. COPELAND ES

12/17/2025 **Defendant's Attorney Contacted Court**
BY PHONE ATTY G. ZAVARELLI INQUIRED IF JUDGE CAN HEAR THERE MOTION TO SHOW CAUSE ON 1/06/26 COURT DATE; PRESENTED TO JUDGE ES
Party: ZAVARELLI, GLYNIS

12/26/2025 **Notice**
BY EFILE BY PLTF'S ATTY; Notice of Filing of Business Records Affidavit ES
Party: DOUGLAS, JOHN A

12/26/2025 **Notice**
Plaintiff's Notice of Filing Medical Documentation in Support of ADA Accommodation Request

01/05/2026 **Proposed Order**
PROPOSED ORDER GRANTING REQUEST FOR RULING BY SUBMISSION

01/05/2026 **Motion Filed**
Defendant's Objections To And Motion To Strike Dr. Isabel Huang's Correspondence Submitted by Copeland - On December 24, 2025; PRESENTED TO JUDGE ES
Party: ZAVARELLI, GLYNIS

01/05/2026 **Motion Filed**
Defendant's Update for the Court's Consideration - and in Relation to the January 6, 2026 Hearing

01/06/2026 **Repair and Remedy Hearing** (10:30 AM) (Judicial Officer Brandt, William P. "Bill")

01/06/2026 **Plaintiff's Attorney Contacted Court**
BY PHONE IS SICK IS NOT ABLE TO MAKE COURT; TRANSFERRED PHONE TO JUDGE; PER JUDGE SEND ZOOM LINK TO PLTF'S ATTY ES

01/06/2026 **Order Entered on Case**
AT TIME OF HEARING, PLTF AND PLTF'S ATTY APPEARED BY ZOOM; DEFNS APPEARED THROUGH COUNSEL; JUDGE FOUND FOR DEFN + ATTY FEES OF \$19,368.50 @ 6.75 INT; EMAILED TO PLTF'S ATTY AND DEFN'S ATTY ES

01/06/2026 **Notice of Appeal Filed**
BY EFILE BY PLTF Notice of Appeal ES
Party: Copeland, Kathryn

01/06/2026 **Notice**
BY EFILE BY PLTF; Plaintiffs Verified Statement and Limited Request for Ruling Regarding ADA Accommodation Request ; PRESENTED TO JUDGE ES
Party: Copeland, Kathryn

01/07/2026 **Motion Filed**

	BY E-FILED BY DEPT'S ATT. Defendant's Motion to Strike Pro Se Plaintiff's Notice of Appeal filed January 6, 2026 - Pursuant to Applicable Vexatious Litigant Order; PRESENTED TO JUDGE ES Party: ZAVARELLI, GLYNIS
01/08/2026	Emailed TO PLTF CIVIL APPEAL PACKETS ES
01/09/2026	E-Mail Received by Court PLTF STATES THE S I P FILING WAS FILED ON 11/20/25 AND TO CONFIRM REFLECTION IN THE COURTS RECORDS AND CASE BE FOWARDED TO CCL ; CASE TO BE FORWARDED ES Party: Copeland, Kathryn
01/12/2026	Statement of Inability to Pay for Appeal Granted ES
01/12/2026	Transcript of Judgment Signed JUDGE APPROVED AND SIGNED; ALL CASE DOCUMENTS FORWARDED TO CCL ON S I P APPEAL; NO MONIES COLLECTED ES
01/13/2026	Case Summary Sheet ES

FINANCIAL INFORMATION

	Plaintiff Copeland, Kathryn Total Financial Assessment 0.00 Total Payments and Credits 0.00 Balance Due as of 04/29/2026 0.00
01/12/2026	Transaction Assessment 118.00
01/12/2026	Inability to Pay Court Cost 118.00



Multispecialty Psychiatry Clinic

Clinic Phone: 214-645-8500

March 25, 2026

To Whom It May Concern:

I had the pleasure of visiting and establishing care with, Ms. Kathryn Copeland (born on 6/28/1985), on 3/25/2026.

Her current diagnosis includes major depressive disorder recurrent, attention deficit and hyperactive disorder combined type, post traumatic stress disorder, and mild cognitive impairment. Due to increase anxiety and stress that can be triggered by situations such as court proceedings, I recommend for as many interactions as possible to be completed in written forms. This can allow Ms. Copeland additional time to organize and express her thoughts.

I appreciate the opportunity to participate in Ms. Copeland's care.

Sincerely,

Lessley N. Chiriboga, MD

CC:

Katie M. Copeland

Via MyChart

Empire Plaza I, 1430 Empire Central Drive, 1st Floor / Dallas, Texas 75247 / Fax: 214-645-3775/ utswmed.org

Re: Kathryn Marie Copeland (DOB 6/28/1985)

Treating Physician Statement

To the Court:

I am Isabel Huang, M.D., Associate Professor of Physical Medicine and Rehabilitation at UT Southwestern Medical Center. I have been treating Ms. Kathryn Copeland since October 2024 for hypermobile Ehlers-Danlos Syndrome (hEDS) with associated autonomic and neurologic complications.

I previously provided medical letters dated **March 2025, September 2025, and December 21, 2025**, describing Ms. Copeland's significant functional limitations and the medical risks associated with prolonged upright posture, sustained cognitive exertion, and participation in adversarial proceedings without appropriate accommodations.

At that time, I advised that her condition was **progressive and unstable**, and that failure to account for these limitations created a risk of **acute neurologic deterioration and physical injury**, including falls.

Since that time, Ms. Copeland experienced a fall with head injury in **February 2026**, followed by neurology evaluation at UT Southwestern. Neurology documented symptoms concerning for spontaneous intracranial hypotension in the setting of Ehlers-Danlos syndrome and prior trauma, and recommended further diagnostic evaluation.

This sequence of events is **medically consistent with the risks previously described** in my earlier correspondence. It reinforces that Ms. Copeland's limitations are not theoretical or transient, but represent an ongoing medical condition requiring appropriate procedural safeguards to prevent further harm and to ensure meaningful participation.

I provide this statement to clarify the medical foreseeability of Ms. Copeland's recent deterioration and to confirm the continuing need for accommodations based on her current functional capacity.

Respectfully,

Isabel S. Huang, M.D.

Associate Professor, Physical Medicine & Rehabilitation
UT Southwestern Medical Center
5303 Harry Hines Blvd, 5th Floor, Suite 101
Dallas, TX 75390

Subject: RE: Claim # 1722960--Clarification of Coverage Scope, Relocation Dates, and Preservation of Evidence
Date: Friday, August 15, 2025 at 8:15:29 AM Central Daylight Time
From: Brochstein, Amye
To: Copeland, Katie

[EXTERNAL EMAIL WARNING] DO NOT CLICK LINKS or open attachments unless you recognize the sender and know the content is safe.

Katie:

The temporary housing/hotel will be extended until the remediation is completed (dates of anticipated completion are being requested). We will be responding to your email shortly.

Thanks,

Amye

Amye R. Brochstein, Esq.

Senior Claims Specialist
Philadelphia Insurance Companies
A Member of the Tokio Marine Group

100 Princeton South Corporate Center, Suite 350 | Ewing, NJ 08626
O: 609.512.4510 | amyebrochstein@phly.com
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From: Copeland, Katie <K.M.COPELAND@tcu.edu>
Sent: Thursday, August 14, 2025 7:42 PM
To: Brochstein, Amye <Amye.Brochstein@phly.com>
Subject: Claim # 1722960--Clarification of Coverage Scope, Relocation Dates, and Preservation of Evidence
Importance: High

CAUTION: Be mindful prior to opening non-TMNA attachments and/or links.

Ms. Brochstein,

I need to clarify two points urgently:

1. In your August 6 email, you stated my hotel stay would be extended through August 18. The Nobleman Hotel advised that they were instructed an extension only through tomorrow, August 15, and requested my personal card for incidentals. Please confirm the correct date and whether Weinstein Properties' insurance intends to cover all hotel costs, including incidentals, without shifting the burden to me. I have not been provided a per diem, nor access to suitable

accommodations for my medical conditions,

2. Which of my claims are being defended under your insured's policy, and which do you assert are outside coverage? I need clarity so I can address uncovered claims separately without confusion.

To date, I have not received clear confirmation of the remediation protocol, its approval status, anticipated timeline, or any intent to communicate with me regarding the process. I have not received any updated written notice from your office or the property regarding changes in the hotel stay.

New ADA/FHA Accommodation Request

- **Request:** Immediate relocation to an ADA-compliant residence until a permanent residence is secured, plus financial assistance for moving costs and per diem (\$75/day). This is reasonable under the ADA (42 U.S.C. § 12182) and FHA (42 U.S.C. § 3604(f)), given my medical vulnerabilities and what I have endured so far.
- **Reality:** If Weinstein denies this, it strengthens my ADA/FHA and retaliation claims (especially for not extending my stay and after they removed their credit card from the room and forced me to use mine or be locked out every night), increasing damages significantly.

Please advise what additional information you need to evaluate their policy compliance, particularly regarding maintenance and disclosure. I cannot return until remediation complies with Texas regulations (16 TAC § 78). My prior demands (relocation, medical reimbursement, full remediation) remain unresolved.

For the record, I am issuing a formal spoliation notice covering all records and communications relating to the construction, maintenance, and habitability of Unit 2145, prior tenant complaints, remediation efforts, and communications with agencies such as City of Fort Worth Code Compliance, TDLR, HUD, DOJ, and DSHS.

Please confirm whether you are preserving these records and ensuring your insured is doing the same.

Sincerely,
Katie Copeland
817-789-8498

From: Brochstein, Amye <Amye.Brochstein@phly.com>

Date: Thursday, August 7, 2025 at 10:34 AM

To: Copeland, Katie <K.M.COPELAND@tcu.edu>

Subject: RE: Weinstein Properties - The Bowery at Southside, TX claim # 1722960

[EXTERNAL EMAIL WARNING] DO NOT CLICK LINKS or open attachments unless you recognize the sender and know the content is safe.

Hi Katie,

I spoke with the insured and the hotel is being extended to Monday August 18, 2025.
Please advise if you will be retuning to the apartment at that time or moving somewhere else.

Thanks,

Amye

Amye R. Brochstein, Esq.

Senior Claims Specialist
Philadelphia Insurance Companies
A Member of the Tokio Marine Group

100 Princeton South Corporate Center, Suite 350 | Ewing, NJ 08626
O: 609.512.4510 | amyebrochstein@phly.com
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From: Copeland, Katie <K.M.COPELAND@tcu.edu>
Sent: Wednesday, August 6, 2025 9:08 AM
To: Brochstein, Amye <Amye.Brochstein@phly.com>
Subject: Re: Weinstein Properties - The Bowery at Southside, TX claim # 1722960

CAUTION: Be mindful prior to opening non-TMNA attachments and/or links.

Can you please connect with them about extending my hotel stay? I think it was extended through today, but obviously we're going to need more time to figure out what's next.

Thank you,
Katie Copeland
817-789-8498

On Aug 5, 2025, at 3:12 PM, Brochstein, Amye <Amye.Brochstein@phly.com> wrote:

[EXTERNAL EMAIL WARNING] DO NOT CLICK LINKS or open attachments unless you recognize the sender and know the content is safe.

Thank you, Ms. Copeland, I will review and respond shortly.

Amye

Amye R. Brochstein, Esq.

Senior Claims Specialist
Philadelphia Insurance Companies
A Member of the Tokio Marine Group

100 Princeton South Corporate Center, Suite 350 | Ewing, NJ 08626

O: 609.512.4510 | amyebrochstein@phly.com

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From: Copeland, Katie <K.M.COPELAND@tcu.edu>

Sent: Tuesday, August 5, 2025 1:18 PM

To: Brochstein, Amye <Amye.Brochstein@phly.com>

Subject: Re: Weinstein Properties - The Bowery at Southside, TX claim # 1722960

CAUTION: Be mindful prior to opening non-TMNA attachments and/or links.

Dear Ms. Brochstein,

Thank you for your voicemail and email regarding my claim related to toxic mold exposure at 405 Crawford Street, Apt. 2145.

Attached are the following documents for your review:

1. My June 27, 2025, formal notice of habitability concerns
2. The BioTex mold assessment, which deems the unit uninhabitable and confirms the presence of painted-over mold (indicating the condition existed before my move-in)
3. Supporting photos and maintenance records documenting Weinstein Properties' knowledge of mold beginning in October 2024, and their failure to take appropriate action thereafter

Please let me know if you require any additional documentation to evaluate policy compliance—particularly regarding Texas disclosure laws, failure to mitigate, or potential material misrepresentations during underwriting or claim response.

As someone who formerly worked in insurance adjusting, I'm aware that certain omissions and delays—especially when linked to health risk—can raise significant concerns about compliance and exclusions.

I appreciate your time and look forward to discussing this further.

Warmly,

Katie Copeland

(817) 789-8498

From: Brochstein, Amye <Amye.Brochstein@phly.com>

Date: Monday, August 4, 2025 at 5:22 PM

To: Copeland, Katie <K.M.COPELAND@tcu.edu>

Subject: Weinstein Properties - The Bowery at Southside, TX claim # 1722960

[EXTERNAL EMAIL WARNING] DO NOT CLICK LINKS or open attachments unless you recognize the sender and know the content is safe.

Hi Ms. Copeland:

Per my voicemail today, I am the claims examiner handling the above matter for Weinstein Properties. They have provided me with information regarding your claim as well as your emails from 7/30 and 8/1 with what you are seeking to settle this matter. We are reviewing all the documentation, including your demands and have requested additional time to do so and respond. Please contact me to discuss.

Thanks,

Amye

Amye R. Brochstein, Esq.

Senior Claims Specialist
Philadelphia Insurance Companies
A Member of the Tokio Marine Group

Claims Department
P.O. Box 950
Bala Cynwyd, PA 19004
Email: claimmail@phly.com
(please include last 7-digits of claim # at the end of the subject line)

100 Princeton South Corporate Center, Suite 350 | Ewing, NJ 08628
O: 609.512.4510 | amy.brochstein@phly.com
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policy limits.

Please confirm receipt of this notice and all enclosures. I respectfully request that Tokio Marine acknowledge its receipt in writing and identify the representative assigned to evaluate this demand.

Respectfully,
Kathryn Copeland
(817) 789-8498

Katie@CopelandLawTexas.com

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